LEGISLATION WATCH CELL

Prevention of Electronic Crimes (Amendment) Act 2025

Report 2025-02

Funded by the European Union

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Introduction

The Prevention of Electronic Crimes (Amendment) Act 2025 received the assent of the president of Pakistan on 29 January 2025. Much like the original 2016 law, which is often referred to as a 'draconian law', these amendments are also deemed to be controversial.

In 2016, the ruse to introduce the Prevention of Electronic Crimes Act (PECA) was that there existed no law for social media regulation nor a framework to curb online hate speech, terrorist content and the harassment of women. The 'need' for the law was also justified citing the National Action Plan, in order to achieve its aims. However, since the enactment of PECA 2016, the law has done less to address the stated aims and has, instead, been used frequently against dissidents—particularly journalists and political activists—as well as women who have complained publicly of harassment.

The weaponization of the 2016 law led to apprehensions about the 2025 (Amendment) Act, which was hastily passed through Parliament without any debate and swiftly assented by the president. On this occasion, the narrative employed to create buy-in for the Amendment was centred around 'fake news'. It had takers, but fewer and with far more caveats than the first time around, due to the manner in which PECA 2016 has been applied over the years.

Substantive changes have been made to the content and procedures of the 2016 law including changes to the amendments made to PECA in 2023. The Prevention of Electronic Crimes (Amendment) Act 2025 introduces new definitions, creates a new offence, establishes a new regulatory authority, a complaints council, tribunals and an investigation agency. The Act converts previously non-cognizable and bailable offences into cognizable and non-bailable offences and extends the law's coverage to the speech about public officials and institutions—both public and private.

Since the enactment of the controversial 2025 (Amendment) Act, several cases have been registered around the country, especially

under the newly introduced offence, S. 26-A, on 'false and fake information'. Although the police no longer have jurisdiction, they have registered cases under the law. The responsibility then lies on the judiciary, when such cases make their way to court. Once a case is registered, the criminal justice system is activated and a defendant is put through the motions of its 'process', which in itself can be coercive.

Whether an offence is made out as per the contents of the first information report (FIR) and if an FIR can stand or should be discharged, are some preliminary assessments the courts need to make while also ensuring bail is not denied as punishment. Just because an offence is classified as non-bailable does not mean bail cannot be obtained. Applicable case law must be applied as cases make their way to courts that require the protection of life, liberty, due process and fundamental rights. Several petitions are currently pending before various high courts of the country, challenging the 2025 (Amendment) Act.

This report analyses the 2025 (Amendment) Act, contrasting it with previous versions of the law, tracking the changes made to its procedures and substantive additions that contravene fundamental rights, especially freedom of expression (see Table 1).

Table 1: PECA amendments timeline

2016	*2023*	*2025*
The Prevention of Electronic Crimes Act 2016 received the assent of the president on 18 August 2016 and was published in the Extraordinary Gazette of Pakistan on 22 August 2016. Act XL of 2016 3545(2016)/Ex. Gaz.	The Criminal Law (Amendment) Act 2023 received the assent of the president on 18 July 2023 and was published in the Extraordinary Gazette of Pakistan on 24 July 2023. Act XXXVII of 2023 1433(2023)/Ex. Gaz.	The Prevention of Electronic Crimes Act (Amendment) 2025 received the assent of the president on 29 January 2025 and was published in the Extraordinary Gazette of Pakistan on 29 January 2025. Act II OF 2025 94(2025)/Ex. Gaz.

Scope of the law

Curbs on speech

One of the primary critiques of PECA 2016 is the criminalization of speech through the creation of vague offences. The 2025 (Amendment) Act adds to the existing litany of excessive curbs by introducing a new offence (adding S. 26A to PECA 2016)—that of intentionally disseminating, publicly exhibiting or transmitting 'any information through any information system, that he knows or has reason to believe to be false or fake and likely to cause or create a sense of fear, panic or disorder or unrest in general public or society'.

The creation of this offence has been the major point of contention and reason for uproar against these amendments. In a vague and overbroad manner, 'false and fake information' has been criminalized with a punishment of up to three years' imprisonment. There is no qualification for the terms 'fake and false'. The 2025 (Amendment) Act also borrows language from anti-terror legislation, with the provision 'likely to cause or create a sense of fear, panic or disorder or unrest in general public or society.' This also exists in S. 10 of PECA 2016, pertaining to cyber-terrorism, which refers to the 'intent' to 'coerce, intimidate, create a sense of fear, panic or insecurity in the Government or the public or a section of the public or community or sect or create a sense of fear or insecurity in society.'

'False' information is already covered under S. 20 of PECA 2016, which qualifies this as 'any information [transmitted] through any information system, which he knows to be false, and intimidates or harms the reputation or privacy of a natural person.'

S. 2a of the 2025 (Amendment) Act adds the term 'aspersion' to PECA 2016, which is defined as 'spreading false and harmful information which damages the reputation of a person' (as a new definition via clause iiia).

The word 'aspersion' is referenced in S. 2R of the Amendment (Chap. 1B), which introduces new categories of 'unlawful' and 'offensive' online content. These range from contravening 'the ideology of Pakistan, etc.' [2R(a)] and containing 'anything obscene or pornographic' [2R(f)] to containing 'aspersions against any person including members of Judiciary; Armed Forces, Majlis-e-Shoora (Parliament) or a Provincial Assembly' [2R(h)].

Article 19 of the Constitution of Pakistan enshrines the freedom of speech as a fundamental right. While there are restrictions through the prescription of broad, subjective, categories, the list in S. 2R goes well beyond those. Of particular concern is 2R(h) which pertains to 'aspersions' against members of the judiciary, armed forces, Parliament or provincial assemblies. While PECA 2016 has been used routinely to charge individuals for 'anti-state' or 'anti-institution' remarks or those against public officials and state institutions, this was never coded in the law and was done in violation of it.

Similarly, takedown requests to platforms reporting such content were also sent routinely, although they had no basis in the law. The world over, the threshold for speech about public officials is higher and does not qualify under the same test as that for a private individual by virtue of their position as public office holders who are held to a level of scrutiny and accountability for discharge of public functions. Institutions also do not enjoy protection in such a blanket manner and are subject to critique.

Social Media Regulatory Authority

The above scheme under S. 2R relates to the regulation of online content for which purpose a new regulatory authority has been created under S. 2A (Chap. 1A), the Social Media Protection and Regulatory Authority (SMRA). Under the scheme of PECA 2016, it was the Pakistan Telecommunications Authority (PTA) that discharged content management powers under S. 37 of the law. S. 37 effectively copied and pasted Article 19 of the Constitution, which pertains to freedom of speech and lists a series of restrictions. Article 19 restrictions are supposed to be 'imposed by law' and jurisprudence

requires that this be done in the least restrictive manner. Instead, a parliamentary and judicial function to elaborate on the restricted categories and interpret them, was outsourced to a telecom regulator, the PTA, in an overbroad manner. The PTA has now been replaced by the SMRA. However, S. 50A states that until the Authority is established, the PTA shall continue to perform its functions.

The more coercive powers of the newly created Authority include the 'regulation of unlawful or offensive content', although these terms remain undefined. The Authority can issue orders to block or remove such content. It has been given powers to regulate the enlistment of social media platforms; grant, renew, refuse, suspend and revoke the enlistment of social media platforms; issue guidelines, directives and standards for social media platforms; partially or fully block the platform for its failure to comply, and prescribe fines for contravention of provisions under the Act. The Authority has also been empowered to proceed on applications made by others regarding the contravention of provisions of the Act and take action accordingly. These are similar powers and functions to those under the Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules 2021, issued under S. 37, which remain in the field and pending adjudication after being challenged in court.

In addition to these powers, any complaint of 'fake information' also lies before it, whereby under S. 2C, '[a]ny person aggrieved by fake and false information may apply to the Authority for removal or blocking access to such information and the Authority shall, on receipt of such application, forthwith, but not later than twenty-four hours, pass such orders as it considers necessary including an order for removal or blocking access to such information.'

The composition of the Authority raises further questions about its independence, since its chairperson and members are appointed by the federal government, and the Authority has powers to sanction content—this including that pertaining to the executive branch.

The Authority comprises a total of nine members, including the chairperson. The ex-officio members include the interior secretary, PEMRA chairman and PTA chairman. The qualification criteria for other members of the Authority require that they be a journalist registered with any press club of Pakistan; a software engineer; a lawyer, a social media professional and a private sector IT entrepreneur, each with no less than ten years of experience in their field.

The decision making of the Authority remains consolidated with the chairman and ex-officio members. For instance, S. 2F stipulates that for meetings of the Authority, five members constitute a quorum and three of these members must include the chairperson and at least two ex-officio members, giving them a majority for decision making. Moreover, the chairperson has not only been given sole authority over the administrative and human resources of the Authority through S. 2D(6), but S. 2D(5) also allows the Authority to 'delegate all or any of its functions and powers, other than the functions and powers under Chapter 1B [that is, enlistment], to the Chairperson or any member or such other officers of the Authority by notification in the official gazette.' This allows for unilateral decision-making, which defeats the purpose of a broad-based membership.

However, this supposedly inclusive framing is also something to be wary of. It mimics the PEMRA Council of Complaints model and harks back to the Inter-Ministerial Committee for the Evaluation of Websites, which was set up through an executive notification—without lawful authority—in 2006 but operated in the shadows with respect to its members and decision-making process. Arbitrary website blocking was a norm without any disclosure or transparency. Unilateral and opaque decision-making has come to be a defining characteristic of regulators such as PEMRA and the PTA. The mere inclusion of professionals from different fields, who will be handpicked by the executive to serve as members of the Authority, does not boast diversity or inclusion, nor does it inspire confidence for better decision-making.

Enlistment of social media platforms

S. 2Q of Chapter 1B mandates the enlistment of social media platforms. However, what such a process entails and at what cost is to be determined by the Authority at any time, including any conditions it 'may deem appropriate'.

Social media platforms are defined in S.2(d) (which adds subsection xxviiib to PECA 2016) as 'any person that owns, provides or manages online information system for provision of social media or social network service or 'a website, application or mobile web application, platform or communication channel and any other such application and service that permits a person to become a registered user, establish an account, or create a public profile for the primary purpose of allowing the user to post or share user-generated content through such an account or profile or enables one or more users to generate content that can be viewed, posted or shared by other users of such platform…'.

This definition casts a wide net with respect to who qualifies under this definition and can be required to 'enlist' with the Authority, especially with the use of the word 'manages', which could easily be construed to be an admin of a WhatsApp group or channel, a Facebook page, YouTube channel, blog or website. Previously, there have been cases registered against admins of groups as well and PECA 2016 is routinely applied in a manner that even if the language of the law—vague in itself—does not allow for an application in a certain manner, procedures are still flouted with impunity to do just that.

Social Media Complaint Council

The 2025 (Amendment) Act creates a Social Media Complaint Council under S. 2T. The mandate of the Council is to receive and act on any complaints regarding a violation of the provisions of the Act. These complaints can be made by 'persons, organizations and general public.'

The Council comprises a chairman and four members, one of whom will be an ex-officio member. S. 2T(5) stipulates that the 'Secretary or Additional Secretary of the division to which business of information technology and telecommunication stands allocated shall be the ex-officio member of the Council.' Much like the SMRA, the federal government has the power to appoint and remove the chairman and its members, except the ex-officio member, once again raising questions regarding the independence of the Council.

Social Media Protection Tribunals

In addition to the Authority and Council, Social Media Protection Tribunals have been created under S. 2V in Chap. 1C. The only mandate specified is in S. 2W(2), which says that any person aggrieved by a decision of the Authority can appeal it before the Tribunal. Other than that, the jurisdiction of the Tribunal has been left to rulemaking. Multiple Tribunals can be established, the power to notify them resides with the federal government as does the power to appoint the chairman and members of the Tribunal, much like the Authority and Council—again raising questions of independence.

The Tribunal consists of a chairman who must be qualified to be a judge of a high court, a journalist registered with a press club with 12 years' experience, and a software engineer and expert in social media rights. An appeal against the Tribunal's decision lies directly to the Supreme Court, within 60 days and removes remedy before a high court.

National Cyber Crime Investigation Agency

Under the original scheme of S. 29 of PECA 2016, an investigation agency could be established or designated to investigate crimes under this law. In 2016, the Federal Investigation Agency (FIA) was designated as the investigation agency under PECA 2016 to investigate and prosecute crimes. The 2025 (Amendment) Act (S. 6) replaces the FIA as the investigation agency by establishing the National Cyber Crime Investigation Agency (NCCIA) under S. 29 of PECA 2016 for 'inquiry into, investigation and prosecution of the

offences' under the Act. However, the FIA was permitted to continue exercising its functions until the establishment of the NCCIA, which is mentioned in S. 50A (under S. 11 of the 2025 (Amendment) Act).

S. 29(7) of PECA 2016 states that 'the investigation agency shall establish its own capacity for forensic analysis of the data or in information systems and the forensic analysis reports generated by the investigation agency shall not be inadmissible in evidence before any court for the sole reason that such reports were generated by the investigation agency' (added under S. 6 of the 2015 Amendment). This conflicts with basic due-process rights as the investigation agency is a party to the case and with an interest to prosecute; reports by entities independent of the investigation agency hold more credence. Meanwhile, S. 40 of PECA 2016 provides for the establishment or designation of a forensic laboratory independent of the investigation agency, to provide expert input to court in relation to electronic evidence collected for investigation and prosecution under the Act. Although such a lab is to be established by the federal government, once again putting a question mark on its independence.

The term 'inquiry' has been included as S. 2(c) (vib) with respect to the investigation and prosecution of offences by the NCCIA. This did not exist in previous versions of PECA 2016 in which the word 'investigation' and 'investigate' were specifically used in S. 29 and S. 30 in connection with the investigation agency and authorized officer. The word 'inquiry' has been included in the language of the law because in practice, call-up notices by the FIA erroneously stated that they were inquiring into a complaint, at times citing the Federal Investigation Agency Act 1974 to derive 'inquiry' powers, even though under the scheme of PECA 2016, the investigation agency is bound to follow procedures as specified under the Act and its Rules.

There was a clear distinction between 'inquiry' and 'investigation' and under the previous scheme, only the latter was inferred. The applicable procedure for investigation for cognizable and non-cognizable offences is prescribed in Rule 7 of the PECA Investigation

Rules 2018, while Rule 7(5) specifies the requirement for a magistrate's permission prior to issuing a notice for attendance. Call-up notices, typically issued in non-cognizable offences, require that the investigation agency apply for permission before a magistrate and then proceed with investigation. However, in practice, this is not done. Moreover, it has been routine practice for the FIA to issue vague summons without providing a copy of the complaint, which is now being emulated by the NCCIA.

Multiple cases were brought before the Islamabad High Court (IHC) with respect to the issuance of vague notices by the FIA and coercive action in response. The IHC, in its order dated 3 November 2020 in WP 2939/2020 (*Rana Muhammad Arshad vs Federation of Pakistan etc*) referred to *Dr Arsalan Iftikhar vs Malik Riaz Hussain and others* [PLD 2012 Supreme Court 903], which is an interpretation by the Supreme Court of the National Accountability Ordinance 1999. With respect to the National Accountability Bureau's practices, the SC observed and held:

> The clear and unambiguous pronouncements given in the case titled Ghulam Hussain Baloch and another v. Chairman, National Accountability Bureau Islamabad and 2 others (PLD 2007 Karachi 469) were violated by NAB in its two letters. In the cited precedent NAB has been given express guidelines as to its responsibilities while summoning or requiring the attendance of persons/witnesses in an inquiry. As per ratio of the case, before summoning a person to attend, NAB was duty bound to identify and particularize the information sought from any witness etc. and to state the nexus between such information and the subject of the inquiry being conducted by NAB. It was observed by the Court that 'while calling [for] the information from any person, the person must be informed of the fact, point, allegation, offence, name of accused, specified matter, if any, concerning the matters ... in the notice so that the person can furnish such information'.

The IHC, in its order, noted 'that the above guidelines regarding the responsibilities of an investigating officer while summoning a person

would also be attracted in case of proceedings relating to criminal offences dealt with by the Agency.' The IHC order uses the word 'Agency', which was a reference to the FIA, but since this word was used, under the scheme of PECA, it would mean the investigation agency under the Act. Therefore, this remains applicable to the NCCIA within the scheme of S. 29.

Jurisdiction

Table 2 compares the jurisdictions of different investigation agencies within the PECA scheme.

When PECA was introduced in 2016, the FIA was designated as the investigation agency under S. 29 of the law, bound by the investigation procedures and rules under the Act. The police were brought in through S. 30 of PECA in the 2023 amendments, but only given powers to take cognizance, that is, register a case. S. 30 in the 2023 amendments, which pertained to the powers of the police to take cognizance, clearly stated that after taking cognizance, they had to immediately refer the case to the FIA for technical opinion and investigation.

The 2025 (Amendment) Act removes the police's role completely from S. 30 and replaces the FIA as the investigation agency by establishing the NCCIA under S. 29. S. 11 of this Act introduces S. 50A to PECA 2016, which states that 'till the establishment… of NCCIA… the Investigation Agency existing prior to commencement of 2025 Act shall continue to perform their functions.'

An investigation agency in the 2016 law is defined as a 'law-enforcement agency established by or designated under this Act.' The authorizing provision is S. 29; S. 29(1) was cited in SRO 897(1)2016 to designate the FIA as the investigation agency under PECA. The amended S. 29 in the 2025 version of the law also expressly mentions the FIA, but makes no such mention of the police.

Table 2: Comparison of jurisdictions of investigation agencies

PECA 2016	'30. Power to investigate. —Only an authorized office of the investigation agency shall have the powers to investigate an offence under this Act: Provided that the Federal Government or the Provincial Government may, as the case may be, constitute one or more joint investigation teams comprising of an authorized officer of the investigation agency and any other law enforcement agency for investigation of an offence under this Act and any other law for the time being in force.'
PECA 2023	'30. Power and procedure to investigate.— (1) In addition to the Federal Investigation Agency, the Police shall be authorized to take cognizance of the offences under this Act. In that case the Police shall be bound to refer the matter relating offence under this Act immediately to the Federal Investigation Agency, for technical opinion and investigation as per its mandate and rules: Provided that the Federal or Provincial Government, as the case may be, may constitute one or more joint investigation teams comprising of an authorized officer of the investigation agency and any other law enforcement agency for investigation of an offence under this Act and any other law for the time being in force. (2) An investigating officer under this Act shall be an officer or Police not below the rank of Inspector of Police or equivalent or, if the Federal Government or the Provincial Government, as the case may, deems necessary to constitute a Joint Investigation Team it shall be headed by an Investigating Officer not below the rank of BS- l8 and other officers of Joint Investigation Team may include equivalent rank from other agencies, as the case may be. The Joint Investigation Team shall comprise five members and for the meeting purposes the quorum shall consists of three members. (3) The investigating officer or the Joint Investigation Team, as case may be, shall complete the investigation in respect of cases triable by the court within forty-five working days. (4) The Court shall, on taking cognizance of a case under this Act, proceed with the trial on weekly basis and shall decide the case within three months, failing which the matter shall be brought, to the notice of the Chief Justice of the High Court concerned for appropriate directions, keeping in view the facts and circumstances of the case.'

PECA 2025	'30. Power to investigate.—Only an authorized officer of the investigation agency shall have the powers to investigate an offence under this Act: Provided that the Federal Government may constitute one or more joint investigation teams comprising an authorized officer of NCCIA and any other law enforcement agency for investigation of offences under this Act. The joint investigation team may seek assistance from any intelligence agency for the purposes of investigation under this Act.'

The police were never designated as the investigation agency under S. 29. They only derived powers to take cognizance of offences under S. 30 in the 2023 version of the law. The 2025 amendment to S. 30 removes any mention of the police and states that 'only an authorized officer of the investigation agency shall have the powers to investigate an offence under this Act,' which means an officer of the NCCIA. Therefore, all cases registered by the police after the 2025 (Amendment) Act are without jurisdiction.

The NCCIA is now operational. Its director-general was appointed through a Cabinet notification dated 4 April 2025, citing S. 29(3) in the 2025 (Amendment) Act. The FIA too has been rendered defunct for the purposes of investigation under PECA and shall cease to perform any functions to this effect.

The 2016 version of S. 30 stated that a joint investigation team (JIT) could co-opt any member of a 'law-enforcement agency'. This distinction was an important one and came up before the Supreme Court in 2023 in petitions challenging the formation of the JIT and issuance of call-up notices to journalists for 'anti-judiciary' remarks. The JIT at the time included members of intelligence agencies, which the language of the law did not permit as they do not qualify as law enforcement agencies. The 2025 (Amendment) Act now allows for the JIT to seek assistance from intelligence agencies.

The presence of operatives from intelligence agencies creates a more intimidatory environment. Moreover, while law enforcement agencies operate under a legal framework that allows for accountability (although it is arguable how effective this is practically)

through mechanisms laid down in laws and before the courts, the same does not apply to intelligence agencies and their operatives.

Cognizance and Compoundability

Table 3 compares cognizance and compoundability within the PECA scheme.

Table 3: Comparison of cognizance and compoundability

PECA 2016	*PECA 2023*	*PECA 2025*
43. Offences to be compoundable and non-cognizable.— (1) All offences under this Act, except the offences under sections 10, 21 and 22 and abetment thereof, shall be non-cognizable, bailable and compoundable: Provided that offences under section 17 shall be cognizable by the investigation agency on a written complaint by the Authority. (2) Offences under sections 10, 21 and 22 and abetment thereof shall be non-bailable, non-compoundable and cognizable by the investigation agency.	9. Amendment of section 43, Act XL of 2016.— In section 43, in sub-section (2), for the expression 'and 22' the expression '22, 22A, 22B and 22C' shall be substituted 10. Insertion of new sections 43A, Act XL of 2016.—In Act XL of 2016, after section 43A, the following new section shall be inserted, namely:- '43A. Complaint against cybercrimes against children. — Complaint against the offences under sections 10, 21, 21A, 21B, 21C, 21D, 21E, 2lF and abatement thereof may be lodged with concerned authorities by the complainant as defined under clause (viia) of section 2.]'	9. Amendment of section 43, Act XL of 2016.—In the said Act, in section 43,— (a) in sub-section (1), for the expression '10, 21 and 22', the expression '10, 13, 14, 20, 21, 22 and 26A' shall be substituted; and (b) in sub-section (2), for the expression '22, 22A, 22B and 22C', the expression '13, 14, 20, 22, 22A, 22B, 22C and 26A' shall be substituted 10. Amendment of section 43A, Act XL of 2016.—In the said Act, in section 43A, — (a) after the expression '21F' the expression '26A' shall be inserted; and (b) for the words 'concerned authorities' the words 'investigation agency' shall be substituted.

The amended S. 43 converts previously non-cognizable and bailable offences into cognizable and non-bailable offences. This increases the propensity for coercive action, which had become a hallmark of the FIA and continues in the same vein with the rapid registration of

FIRs on vague grounds with the inclusion of cognizable offences to circumvent judicial oversight and gain power to arrest.

Procedural changes

Previously, under the scheme of S. 20 (which has now been converted into a cognizable offence and was the most abused section of PECA 2016, particularly against journalists), many cases were quashed on the basis that a third party or state official on behalf of an institution, could not be a complainant and that the aggrieved individual, who was a 'natural person'[1] had to file the complaint. It was common practice, however, for third parties and particularly state officials, especially the technical assistant of the FIA, to do so. Complainants can now be filed by a third party as per the amended definition in Table 4.

Table 4: Comparison of definitions of 'complainant'

PECA 2016	*PECA 2023*	*PECA 2025*
No definition	[(viia) 'complainant' means any person who makes complaints of any offence under this Act and includes a victim, or an individual having substantial reasons to believe the offence is being committed or likely to be committed and any authority referring the complaint for investigation;]	'(via) 'complainant' means any person who makes complaint of any offence under this Act and includes a victim, or an individual having substantial reasons to believe that the offence has been committed;'

The definition of 'person' has also been changed under S. 2(c)(xxvb) of the 2025 (Amendment) Act to mean 'a legal or natural person and includes a body politic or corporate.' This borrows from the Pakistan Penal Code definition, which was held to be distinct from 'natural person' in PECA 2016. The 2025 (Amendment) Act now includes organizations/institutions. This essentially extends 'legal' cover to what was already a matter of routine, in practice, but in violation of

[1] Distinct from the definition of 'person' in the Pakistan Penal Code, which includes organizations and legal entities.

the law. It appears to have been done to neutralize the challenges that were raised against such flagrant violations of the letter of the law, by now allowing for it within the scope of the law.

Recommendations

Excessive criminalization through vague offences such as the newly created S. 26A, expanded powers and role for the investigation agency and intelligence agencies, and the expansion of executive control over speech and information, are among the primary concerns vis-a-vis the 2025 amendments to PECA 2016.

Including a regulatory framework within a criminal law was an erroneous approach from the very beginning. It began with the inclusion of S. 37 in the 2016 version of PECA; in the 2025 (Amendment) Act, there is a far more expansive and overlapping structure under the SMRA, Complaints Council and Tribunals.

There is no other recommendation to be made other than a complete repeal of the 2025 (Amendment) Act, on which the Human Rights Commission of Pakistan (HRCP) insists. However, even if these amendments are repealed, this does not mean the coercive application of the law in its previous iterations is any more acceptable. HRCP has already identified problems with the law and its implementation, which persist to this day (Box 1).

In addition, the use and abuse of PECA since its enactment in 2016 must be scrutinized. There must be accountability of investigation agencies and the regulator for violations of the law and infringement of citizens' fundamental rights, especially by the judiciary when cases are brought before it with a view to protecting rights rather than indulging the investigation agency and regulator for their excesses

There must also be criminal justice system reform as a law to enable recourse for genuine grievances of citizens. No matter how perfect on paper—and PECA is anything but—such laws will always be put to the test of application, especially once operationalized.

Box 1: Overreach and ambiguity: What is wrong with PECA 2016

The investigation agency issues vague, undated summons and refusal to provide copies of complaints with the call-up notices. If the accused and their counsel are not provided with a copy of the complaint, how are they supposed to respond to the allegations. There can be no fair trial if the pre-trial procedure is not fair, directly impacting Article 10-A rights.

Investigations are initiated without authorization and courts compel litigants to join such investigations without any inquiry into the legality of the investigation or accounting for the misconduct of officials, though brought on record

The pre-trial stage is coercive and there exist no checks and balances. Once at the FIA office, both complainants or those accused are at the mercy of the FIA. To the layperson, Sections 160 and 161 seem reasonable but in practice, those summoned, men, women or minors, are made to wait for hours, are called in repeatedly and treated as guilty from the day a complaint is lodged. There is no effort to distinguish between an accused and a witness; even the summons do not reflect this crucial distinction since no details are disclosed. It is the pre-trial stage, at the investigation level, where the least amount of protections are available but are most needed.

To date, there has been no effective oversight by the parliament of the FIA's misconduct and excesses, nor have the courts penalised any officer or the Agency, even when they have disregarded the court's directions. This has allowed violation of due process and mala fide application of the law to go unchecked, at the cost of citizens being deprived of any remedy or justice.

Acting outside the law with impunity has become the norm. Therefore, accountability has to be immediate. Mechanisms to hold investigating agencies to account for abuse of power, delay in investigation, manner of investigation which is harmful to dignity of the complainants or victims of false claims, are required within the law itself. It is relief enough for a defendant when a case against them comes to an end, they do not have the ability or resources to initiate malicious prosecution proceedings against officers, and there is always fear of further retaliation. No defendant or complainant is compensated for the time, expense and agony they are subjected to, during various stages of their case.

Source: F. Aziz. (2022). *Rethinking the Prevention of Electronic Crimes Act.* Human Rights Commission of Pakistan.

Annex: Text of Acts passed under PECA scheme

- Prevention of Electronic Crimes (Amendment) Act 2025
- Criminal Laws (Amendment) Act 2023
- Prevention of Electronic Crimes Act 2016

REGISTERED No. M - 302 / L.-7646

The Gazette of Pakistan

EXTRAORDINARY
PUBLISHED BY AUTHORITY

ISLAMABAD, WEDNESDAY, JANUARY 29, 2025

PART I

Acts, Ordinances, President's Orders and Regulations

SENATE SECRETARIAT

Islamabad, the 29th January, 2025

No. F. 9(05)/2025-Legis.—The following Act of Majlis-e-Shoora (Parliament) received the assent of the President on 29th January, 2025 and is hereby published for general information:

ACT NO. II OF 2025

AN

ACT

further to amend the Prevention of Electronic Crimes Act, 2016

WHEREAS it is expedient further to amend the Prevention of Electronic Crimes Act, 2016 (XL of 2016) in the manner and for the purposes hereinafter appearing;

It is hereby enacted as follows:—

1. **Short title and commencement.**—(1) This Act shall be called as the Prevention of Electronic Crimes (Amendment) Act, 2025.

(2) It shall come into force at once.

Price: Rs. 40.00

[94(2025)/Ex. Gaz.].

2. **Amendment of section 2, Act XL of 2016.**—In the Prevention of Electronic Crimes Act, 2016 (XL of 2016) hereinafter referred to as "the said Act", in section 2, in sub-section(1),—

(a) after clause (iii), the following new clause (iiia), shall be inserted, namely:—

"(iiia) "aspersion" means spreading false and harmful information which damages the reputation of a person;";

(b) for clause (iv), the following shall be substituted, namely:—

"(iv) "Authority" means the Social Media Protection and Regulatory Authority established under section 2A";

(c) for clause (via), the following shall be substituted, namely:—

"(via) "complainant" means any person who makes complaint of any offence under this Act and includes a victim, or an individual having substantial reasons to believe that the offence has been committed;"

"(vib) "inquiry" includes every inquiry conducted by an investigation agency on a complaint made in writing";

(c) after clause (xxv), the following new clauses shall be inserted, namely:—

"(xxva) "Unlawful or offensive content" means the offence as defined in section 2R;

(xxvb) "person" means a legal or natural person and includes a body politic or corporate;

(xxvb) "prescribed" means rules or regulations made under this Act;";

(d) after clause (xxviiia), the following new clause shall be inserted, namely:—

"(xxviiib) "social media platform" means—

(a) any person that owns, provides or manages online information system for provision of social media or social network service; or

(b) a website, application or mobile web application, platform or communication channel and any other such application and service that permits a person to become a registered user, establish an account, or create a public profile for the primary purpose of allowing the user to post or share user-generated content through such an account or profile or enables one or more users to generate content that can be viewed, posted or shared by other users of such platform but shall not include the licensees of Pakistan Telecommunication Authority;"; and

(e) after clause (xxx), the following new clause shall be inserted, namely:—

"(xxxa) "Tribunal" means the Social Media Protection Tribunal established under Chapter 1C;".

3. **Insertion of Chapters 1A, IB and IC, Act XL of 2016.—**In the said Act, after Chapter 1, the following new Chapters shall be inserted, namely:—

"CHAPTER-1A

AUTHORITY

2A. **Establishment of the Authority.—**(1) As soon as may be after the commencement of the Prevention of Electronic Crimes (Amendment) Act, 2025 (of 2025), the Federal Government shall, by notification in the official Gazette, establish an Authority to be known as the Social Media Protection and Regulatory Authority for carrying out the purposes of this Act.

(2) The Authority shall be a body corporate having perpetual succession and a common seal and may sue and be sued in its own name with powers subject to and for the purposes of this Act to hold and dispose of property and to enter into contract.

(3) The principal office of the Authority shall be at Islamabad and it may set up other offices in the provincial capitals and at such other places across Pakistan as the Authority may deem appropriate.

2B. **Powers and functions of the Authority.—**(1) In addition to the functions and powers specified otherwise in this Act, the Authority shall have the following powers and functions, namely:—

(a) promote education and research in the related field;

(b) promote, incentivize and facilitate social media platform;

(c) promote awareness about issues in the public and private sector through print, digital or social and electronic media etc., or any other medium as the Authority may deem appropriate;

(d) ensure online safety and rights of persons on social media platforms from any kind of harm;

(e) regulate the unlawful or offensive content on the social media platforms accessible from Pakistan;

(f) regulate enlistment of social media platforms;

(g) grant, renew, refuse, suspend and revoke enlistment of social media platform;

(h) to partially or fully block social media platform if it fails to comply with the provisions under this Act until the compliance is made;

(i) issue guidelines, directives and standards for social media platforms;

(j) proceed on applications made on any contravention under this Act and take actions accordingly;

(k) prescribe fines for contravention of the provisions of Chapters 1A and 1B or rules or regulations made thereunder;

(l) issue directions to the relevant authorities to block or remove the unlawful or offensive content for the reasons to be recorded in writing for a period of thirty days subject to grant of another extension if any for maximum period of thirty days by majority of all the members of the Authority;

(m) coordinate or engage with other authorities, international agencies or organizations, in any study, training or cooperation project related to online safety;

(n) enter into contracts as may be necessary for the discharge of any of its powers and functions;

(o) engage in human resource development and training of its officers and staff;

(p) liaise and interact with counterpart organizations in other countries for capacity building and exchange of information;

(q) carry out capacity building and training of relevant entrepreneurs and providing them with facilities, including but not limited to, setting up incubation centers to promote responsible social media platforms;

(r) coordinate the implementation of any foreign-aided technical assistance projects;

(s) make regulations for receiving or processing complaints and to provide a remedial mechanism;

(t) to initiate action on any contravention of the provisions of this Act or rules made thereunder on its own motion or on receipt of an application as the case may be;

(u) constitute such committees or sub-committees, for the performance of its functions, as it may deem appropriate; and

(v) perform any other function that is ancillary, incidental or consequential to any of the aforesaid functions.

2C. **Complaint to the Authority on fake information.**—Any person aggrieved by fake and false information may apply to the Authority for removal or blocking access to such information and the Authority shall, on receipt of such application, forthwith, but not later than twenty-four hours, pass such orders as it considers necessary including an order for removal or blocking access to such information,

2D. **Composition of the Authority.**—(1) The Authority shall consist of a Chairperson and eight other members out of which Secretary Ministry of Interior, Chairman PEMRA and Chairman Pakistan Telecommunication Authority (PTA) or any member of PTA nominated by him shall be the *ex*-officio members.

(2) The Chairperson and five members, other than *ex-officio* members, shall be appointed by the Federal Government on such terms and conditions as may be determined by it. The Chairperson shall be eminent professional with

recognized bachelor's degree and with fifteen years' experience in information technology or law or social media policy governance or related emerging technologies.

(3) The Chairperson and members, other than *ex-officio* members, shall be appointed for a non-extendable period of five years/provided the Chairperson or a member does not exceed fifty-eight years of age on the date of his initial appointment.

(4) The following shall qualifications of members, other than *ex*-officio Members, namely:—

(a) a journalist registered with any press club of Pakistan, having not less than ten years of experience, with known professional competence in his field, and minimum qualifications of a bachelor's degree in-humanities or journalism, recognized by the Higher Education Commission of Pakistan;

(b) a software engineer with a minimum qualification of a bachelor's degree in software engineering or an allied subject recognized by the Higher Education Commission of Pakistan having not less than ten years of experience;

(c) an advocate with a minimum qualification of a bachelor's degree in law recognized by the Higher Education Commission of Pakistan having not less than ten years of experience as practicing advocate;

(d) a social media professional with a minimum qualification of a bachelor's degree in an associated subject recognized by the Higher Education Commission of Pakistan, with ten years of experience in the online and civil rights space; and

(e) a private sector IT entrepreneur with minimum qualification of a bachelor's degree recognized by the Higher Education Commission of Pakistan and having not less than ten years of field experience.

(5) The Authority may delegate all or any of its functions and powers, other than the functions and powers under Chapter 1B, to the Chairperson or any member or such other officers of the Authority by notification in the official gazette subject to such conditions as it may deem appropriate.

(6) The powers of the Authority in the matters relating to its administration and human resources shall be exercised by the Chairperson in such manner as may be prescribed.

(2E) **Removal of Chairperson and members.**—(1) The Federal Government may remove the Chairperson or a member, other than *ex*-officio members, from his office if he is found unable to perform the functions of his office due to mental or physical disability, inefficiency or to have committed misconduct.

Explanation.—For the purposes of this section, the expression "misconduct'' means conviction for any abuse or misuse of authority.

(2) In case of a vacancy occurring due to the death, resignation, retirement or removal of Chairperson or any member, other than the *ex-officio* members, the Federal Government shall appoint another qualified person within a period not exceeding three months from the date the vacancy occurred.

(3) The Federal Government may appoint an acting Chairperson out of the existing members other than *ex-officio* members for a maximum period of three months, to perform day to day functions.

(2F) **Meetings of the Authority, etc.**—(1) The Chairperson, or in his absence the member elected by the members present in the meeting, shall preside a meeting of the Authority.

(2) Five members, including at least two ex-*officio* members and the Chairperson, shall constitute a quorum for meetings of the Authority.

Explanation.—In case of absence of Chairperson, members may elect one member as Chairperson to preside the meeting.

(3) The members shall have the right to receive at least seven days in .advance notice containing time, date and place of the meeting and the agenda of meeting on which decision by the Authority shall be taken.

(4) The decisions of the Authority shall be taken by majority of its members present, and in case of a tie, the Chairperson shall have a casting vote. The presence of members for the purposes of quorum shall be deemed to be adequate if the meeting is carried out through social media platforms.

(5) All orders, determinations and directions of the Authority shall be taken in writing and shall identify the orders, determinations and directions of the Chairperson and members separately.

(6) No act or proceedings of the Authority shall be invalid by reason only of the existence of a vacancy in or defect in the constitution of the Authority.

(2G) **Powers and functions of the Chairperson.—**(1) The Chairperson shall also function as the chief executive of the Authority and shall perform such functions and exercise such powers as may be delegated by the Authority.

(2) The Chairperson shall have exclusive powers to perform such functions and exercise such powers which require immediate action including issuance of direction for blocking of any unlawful online content:

Provided that any such exercise of power or performance of function shall be subject to ratification by the Authority within forty-eight hours:

Provided further that such notification can be done by circulation.

(2H) **Chairperson and members not to engage themselves in certain business, etc.**—(l) The Chairperson or any member, shall not, during the term of office, engage himself in any other service, business, vocation or employment, or enter into the employment of, or accept any advisory or consultancy relationship with any person or entity engaged in applying for the registration from the Authority or operating any media related business within the purview of the Authority or in providing services or products to the Authority on any of the projects, schemes, proposals or plans undertaken, executed or supervised by the Authority or any related undertaking of such aforesaid person or entity. The Chairperson or any member shall not have any direct or indirect financial interest or any connection which might reasonably be viewed as giving rise to a conflict of interest with any person, entity or related undertaking involved in any regulated activity under this Act.

(2) The Chairperson or any member, other than *ex-officio* members, shall neither, for so long as he holds office and for a period of one year thereafter, seek or hold any office or employment nor acquire or purchase whether in his name or otherwise any interest in any company, corporation, partnership, trust, firm or company carrying on business in any regulated activity or the business of providing consultancy or advisory services to any person undertaking any regulated activity under this Act.

(2I) **Officers, employees, etc.—**To carry out the purposes of this Act, the Authority may, from time to time, appoint experts, consultants, advisers and other officers and employees on such terms and conditions as may be prescribed and the share of Provinces in the appointment shall be maintained in accordance with paragraph (g) of Article 38 of the Constitution.

(2J) **Officers, etc. deemed to be public servants.—**The Chairperson, members, other officers and employees of the Authority shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

(2K) **Fund.**—(1) There shall be established a fund to be known as Social Media Protection and Regulatory Authority Fund which shall vest in the Authority and shall be utilized by the Authority to meet its financial needs in connection with carrying out its functions, including expenses incurred in setting up and maintaining offices, purchasing and maintaining, equipment, payment of salaries and other remunerations to the Chairperson, members, employees, experts and consultants of the Authority and any other expenditures that may be incurred in carrying out the purposes of this Act and matters incidental thereto.

(2) The Fund shall consist of—

(a) seed money and grant from the Federal Government;

(b) any fee prescribed by the Authority;

(c) loans obtained with special or general sanction of the Government; and

(d) all other sums and additional fees received by the Authority and revenue received from any other source.

(3) The Authority may open and operate one or more accounts in local or foreign currency, in any scheduled bank in Pakistan.

(4) The Authority, may invest its funds in such investments as it may, from time to time, determine, except fund provided by the Government.

2L. **Budget.**—The Authority shall, in respect of each financial year, prepare its own budget and submit it to the Government through its administrative division and the finance division three months before the commencement of every financial year for approval.

2M. **Accounts and audit.**—(1) The Authority shall maintain complete and accurate books of accounts of its actual expenses and receipts in such form as may be prescribed in accordance with Articles 169 and 170 of the Constitution of the Islamic Republic of Pakistan.

(2) The Authority shall cause, to be carried out audit of its accounts by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Act, 1961 (X of 1961).

(3) Notwithstanding the audit specified, in sub-section (2) the Auditor-General of Pakistan shall have the power to audit or cause to be audited the accounts of the Authority.

2N. **Annual report.**—The Authority shall compile and submit an annual report on its operations and accounts for each financial year to both houses of the Majlis-e-Shoora (Parliament) and shall also arrange for its publication and circulation to the media and the public.

2O. **Power of the Federal Government to Issue directives.**—The Federal Government may, as and when it considers necessary, issue directives to the Authority on matters of policy relating to this Act, and such directives shall be binding on the Authority, and if a question arises as to whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

2P. **Indemnity.**—No suit, prosecution or either proceedings shall lie against the Government or public authority or functionary or any other person exercising any powers or performing any function under this Act or for anything done in good faith.

CHAPTER-IB

ENLISTMENT ETC

2Q. **Enlistment.**—(1) The Authority may require any social media platform to enlist with it in such manner, form and on payment of such fee, as may be prescribed.

(2) The Authority may stipulate, in addition to the requirements of this Act, such conditions or requisites as it may deem appropriate while enlisting a social media platform.

2R. **Unlawful or offensive online content.**—(1) The Authority shall have the power to issue directions to a social media platform for removal or blocking of online content, if such online content—

(a) is against the ideology of Pakistan, etc.;

(b) incites the public to violate the law, take the law in own hands, with a view to coerce, intimidate or terrorize public, individuals, groups, communities, government officials and institutions;

(c) incites public or section of public to cause damage to governmental or private property;

(d) coerce or intimidate public or section of public and thereby preventing them from carrying on their lawful trade and disrupts civic life;

(e) incites hatred and contempt on religious, sectarian or ethnic basis to stir up violence or cause internal disturbance;

(f) contains anything obscene or pornographic in contravention of any applicable law;

(g) is known to be fake, or false or there exist sufficient reasons to believe that the same may he fake or false beyond a reasonable doubt;

(h) contains aspersions against any person including members of Judiciary; Armed Forces, Majlis-e-Shoora (Parliament) or a Provincial Assembly; or

(i) promotes and encourages terrorism and other forms of violence against the State or its institutions.

(2) Without prejudice to any other restrictions in this regard, while reporting the proceedings of the Majlis-e-Shoora (Parliament) or a Provincial Assembly, such portion of the proceedings as the Chairman of the Senate, the Speaker of the National Assembly or, as the case may be, Speaker of the Provincial Assembly may have ordered to be expunged, shall not be streamed or made available for viewing on social media platforms in any manner and every effort shall be made to release a fair account of the proceedings.

(3) The statements of prescribed organizations or their representatives or members thereof shall not be streamed or made available for viewing on social media platforms in any manner.

(2S) **Handling of complaints by social media platforms.—**The social media platforms shall maintain an effective and transparent procedure for handling complaints about unlawful or offensive online content. The social media platforms shall supply users with any easily recognizable, directly accessible, and permanently available procedure for submitting complaints about unlawful or offensive online content.

(2T) **Social Media Complaint Council,—**(1) The Federal Government shall by notification in the official Gazette, constitute Social Media Complaint Council which shall consist of a Chairman and four members including one *ex*-officio member to receive and process complaints made by persons, organizations and general public against violation of any provision of this Act as may be prescribed by regulations.

(2) The Chairman and members other than *ex*-officio members of the Council shall be appointed by the Federal Government for a term of three years extendable for another similar term on the terms and conditions of service as may be determined by it.

(3) The Chairman and members other than *ex*-officio member of the Council, shall not exceed sixty-two years of age at the time of their initial appointment.

(4) The Chairman and members of the Council shall be eminent professional having a recognized bachelor's degree and with fifteen years experience in information technology or law or social media policy governance or related emerging technologies.

(5) Secretary or Additional Secretary of the division to which business of information technology and telecommunication stands allocated shall be the *ex*-officio member of the Council.

(6) The Chairman or a member of the Council may resign from his office by writing under his hand addressed to the Federal Government through the division concerned.

(7) The Federal Government may remove the Chairman or a member of the Council if he is found unable to perform the functions of his office due to mental or physical disability, inefficiency or to have committed misconduct.

Explanation.—For the purposes of this section, the expression "misconduct" means conviction for any offence involving moral turpitude and abuse or misuse of authority.

(8) In case of a vacancy occurring due to the death, resignation or removal of Chairman or any member of the Council, other than the *ex*-officio member, the Federal Government shall appoint another qualified person within a. period not exceeding two months from the date the vacancy occurred.

2U. **Violation or non-implementation.—**In case of any violation or non-implementation of any directions of the Authority by a social media platform, the Authority may approach the Tribunal for appropriate action.

CHAPTER IC

SOCIAL MEDIA PROTECTION TRIBUNAL

2V. **Tribunals.**—(1) The Federal Government may, by notification in the official gazette, establish as many Social Media Protection Tribunals for the purposes of this Act as it may determine. Where more than one such Tribunals are established, the Federal Government shall specify territorial limits within which or the class of cases in respect of which each of such Tribunal shall exercise jurisdiction under this Act.

(2) A Tribunal shall consist of—

(a) a Chairman, who has been or is qualified to be a judge of a High Court;

(b) a journalist registered with any press club of Pakistan having not less than twelve years of relevant experience with known professional competence in his field and having a bachelor's degree in journalism recognized by the Higher Education Commission of Pakistan; and

(c) a software engineer, and expert in the field of social media rights haying a minimum of bachelor's degree recognized by the Higher Education Commission, of Pakistan, in relevant field or allied subject.

(3) The Chairman and members of a Tribunal shall be appointed by the Federal Government for a period of three years, on such terms and conditions as may be prescribed.

(4) The Chairman or a member of a Tribunal may resign from his office by writing under his hand addressed to the Federal Government through the division to which business of law stands allocated.

(5) The Federal Government may remove the Chairman or a member of the Tribunal if he is found unable to perform the functions of his office due to mental or physical disability, inefficiency or to have committed misconduct.

Explanation.—For the purposes of this section, the expression "misconduct" means conviction for any offence involving moral turpitude and abuse or misuse of authority.

(6) In case of a vacancy occurring due to the death, resignation, completion of his term of appointment or removal of Chairman or any member of the Tribunal, the Federal Government shall appoint another qualified person within a period not exceeding one month from the date, the vacancy occurred.

(7) The Tribunal shall decide all cases within ninety days. In case the decision is not rendered within the stipulated time, the Tribunal shall record the reasons for the same.

(8) The Tribunal shall follow such procedure as may be prescribed.

(2W) **Jurisdiction of the Tribunal.**—(1) The Tribunal shall exercise such powers and perform such functions as are or may be conferred upon or assigned to it by or under this Act or rules made thereunder.

(2) Any person aggrieved by any decision of the Authority may prefer an appeal before the Tribunal in such manner as may be prescribed.

2X. **Appeal against decisions of the Tribunal.**—Any person aggrieved by the final decision of the Tribunal may prefer an appeal to the Supreme Court of Pakistan within sixty days of receipt of the decision."

4. **Amendment of section 17, Act XL of 2016.**—In the said Act, in section 17, for the word "Authority", the words "Pakistan Telecommunication Authority" shall be substituted.

5. **Insertion of new section 26A, Act XL of 2016.**—In the said Act, after section 26 the following new section 26A shall be inserted, namely:—

"26A, **Punishment for false and fake information.**—Whoever intentionally disseminates, publicly exhibits, or transmits any information through any information system,, that he knows or has reason to believe to be false or fake and likely to cause or create a sense of fear, panic or disorder or unrest in general public or society shall be punished with imprisonment which may extend upto three years or with fine which may extend to two million rupees or with both."

6. **Amendment of section 29, Act XL of 2016.**—In the said Act, for section 29, the following shall be substituted namely—

"29. **Investigation agency.**—(1) The Federal Government shall establish an investigation agency to be called the National Cyber

Crime Investigation Agency (NCCIA) for inquiry into, investigation and prosecution of the offences specified under this Act.

(2) The NCCIA shall be headed by a Director General, who shall have the power to employ any other officers, prosecutors and staff as may be prescribed.

(3) The Federal Government shall appoint the Director General of the NCCIA for a non-extendable term of three years, and the administration and control of the NCCIA shall vest in the Director General who shall exercise in respect of the NCCIA the powers of Inspector General of Police under the Police Order, 2002 (Chief Executive's Order No. 22 of 2002).

(4) For the purposes of inquiry and investigation, the officers of the NCCIA shall be deemed to be the police officer of equivalent rank as required under the Code. The officers of the NCCIA shall have the same powers and functions and related authority for the performance of investigating functions as are conferred on a police officer of the equivalent rank under the Code.

(5) After establishment of the NCCIA, the Cyber Crime Wing of the Federal Investigation Agency shall cease to exist and all personnel, cases, inquiries, investigations, assets, properties, budget, liabilities, rights, obligations, privileges and matters related thereto or connected therewith in respect of the defunct Cyber Crime Wing of the Federal Investigation Agency shall stand transferred to the NCCIA.

(6) Unless otherwise provided for under this Act, the investigation agency and the authorized officer shall in all matters follow the procedure laid down in the Code to the extent that it is not inconsistent with any provision of this Act.

(7) The investigation agency shall establish its own capacity for forensic analysis of the data or in information systems and the forensic analysis reports generated by the investigation agency shall not be inadmissible in evidence before any court for the sole reason that such reports were generated by the investigation agency.

(8) Notwithstanding provisions of any other law, the Federal Government shall make rules for appointment, promotion, transfer

in the investigation agency including undertaking of specialized courses in digital forensics, information technology, computer science and other related matters for training of officers and staff of the investigation agency:

Provided that until such time, rules are made by the Federal Government, service matters of officers and staff of the NCCIA shall be regulated under the Civil Servants Act, 1973 (LXXI of 1973) and rules made thereunder.

(9) Without prejudice to anything contained in this section, the rules, orders or any instruments made and issued under this Act prior to commencement of the Prevention of Electronic Crimes (Amendment) Act, 2025 (of 2025) shall, mutatis mutandis, apply to the NCCIA with necessary modifications.".

7. **Substitution of section 30, Act XL of 2016.—**In the said Act, for section 30, the following shall be substituted, namely:—

"30. **Power to investigate.—**Only an authorized officer of the investigation agency shall have the powers to investigate an offence under this Act:

Provided that the Federal Government may constitute one or more joint investigation teams comprising an authorized officer of NCCIA and any other law enforcement agency for investigation of offences under this Act. The joint investigation team may seek assistance from any intelligence agency for the purposes of investigation under this Act.".

8. **Amendment of section 30D, Act XL of 2016.—**In the said Act, in section 30D, for the words, "Federal Investigation Agency" the words "investigating agency" shall be substituted and for the words "Pakistan Telecommunication Authority" the words "Authority" shall be substituted.

9. **Amendment of section 43, Act XL of 2016.—**In the said Act, in section 43,—

(a) in sub-section (1), for the expression "10, 21 and 22", the expression "10, 13, 14, 20, 21, 22 and 26A" shall be substituted; and

(b) in sub-section (2), for the expression "22, 22A, 22B and 22C", the expression "13, 14, 20, 22, 22A, 22B, 22C and 26A" shall be substituted.

10. **Amendment of section 43A, Act XL of 2016.—**In the said Act, in section 43A, —

(a) after the expression "21F" the expression "26A" shall be inserted; and

(b) for the words "concerned authorities" the words "investigation agency" shall be substituted.

11. **Insertion of new section 50A, Act XV of 2016.—**In the said Act, after section 50, the following new section 50A shall be inserted, namely:—

"50A. **Transitory.—**Till the establishment of the Authority and NCCIA, the Pakistan Telecommunication Authority and the Investigation Agency existing prior to commencement of the Prevention of Electronic Crimes (Amendment) Act, 2025 (of 2025) shall continue to perform their functions accordingly.".

12. **Amendment, of section 51, Act XL of 2016.—**In the said Act, in section 51,—

(a) in sub-section (2),—

(i) for clause (h), the following shall be substituted, namely,—

"(h) procedure for seeking appropriate order of the Authority for removal, or blocking of online content;";

(ii) in clause (p), 'and' at the end shall be omitted; and

(iii) in clause (q), for full stop at the end a semicolon and the word "and" shall be substituted and thereafter the following new clause shall be added, namely, —

"(q) provision of fines for contravention of the provisions of this Act and rules made thereunder.".

13. **Insertion of new section 51A, Act XL of 2016.—**In the said Act, after section 51, amended as aforesaid, the following new section shall be inserted, namely, —

"51A. **Power to make regulations.—**The Authority may, by notification in the official Gazette, make regulations for carrying out the purposes of this Act-.".

14. **Amendment of section 55, Act XL of 2016.—**(1) In the said Act, in section 55, the existing provision shall be numbered as sub-section (1) of that section and after sub-section (1), numbered as aforesaid, the following new sub-sections shall be added, namely:—

"(2) Any rules, regulations, orders, directions or instructions duly made or issued under this Act prior to commencement of the Prevention of Electronic Crimes (Amendment) Act, 2025 (of 2025) by an authority competent to make them and in force immediately before the said commencement shall, in so far as such rules, regulations, orders, directions or instructions are not inconsistent with the provisions of this Act or rules, regulations, orders, directions or instructions made or issued thereunder, be deemed to be rules, regulations, orders, directions or instructions made under this Act.

(3) Notwithstanding the provision of sub-section (2) any such rules, regulations, orders, directions or instructions existing prior to commencement of the Prevention of Electronic Crimes. (Amendment) Act, 2025 (of 2025) or the rules, regulations, orders, directions or instructions made or issued thereunder in so far as they are inconsistent with the provisions of this Act shall, to the extent of such inconsistency, be void.".

SYED HASNAIN HAIDER,
Secretary,

PRINTED BY THE MANAGER, PRINTING CORPORATION OF PAKISTAN PRESS, ISLAMABAD.
PUBLISHED BY THE DEPUTY CONTROLLER, STATIONERY AND FORMS, UNIVERSITY ROAD. KARACHI.

REGISTERED No. M - 302
L.-7646

The Gazette of Pakistan

EXTRAORDINARY
PUBLISHED BY AUTHORITY

ISLAMABAD, MONDAY, JULY 24, 2023

PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 18th July, 2023

No. F.23 (90)/2021-Legis.—The following Act of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 18th July, 2023 is hereby published for general information:—

ACT NO. XXXVII OF 2023

AN

ACT

further to amend the Prevention of Electronic Crimes Act, 2016, Pakistan Penal Code and the Qanun-e-Shahadat, 1984

WHEREAS it is expedient further to amend the Prevention of Electronic Crimes Act, 2016 (Act XL of 2016), Pakistan Penal Code (Act XLV of 1860) and the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984), in the manner and for the purposes hereinafter appearing;

It is hereby enacted as follows:-

Price: Rs. 10.00

[1433(2023)/Ex. Gaz.]

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1. **Short title and commencement.**—(1) This Act shall be called the Criminal Laws (Amendment) Act, 2023.

(2) It shall come into force at once.

2. **Amendment of section 2, Act XL of 2016.**—In the Prevention of Electronic Crimes Act, 2016 (Act XL of 2016), hereinafter referred to as Act XL of 2016, in section 2, in sub-section (1),-

(i) after clause (vi), the following new clauses shall be inserted, namely:-

"(via) "child" means a person below the age of eighteen years;";

(vib) "child sexual abuse content" means the representation, by whatever means, of a child engaged in real or simulated sexually explicit conduct or representation of the sexual parts of a child for primarily sexual purposes;";

(ii) after clause (vii), the following new clause shall be inserted, namely:-

"(vii a) "complainant" means any person who makes complaints of any offence under this Act and includes a victim, or an individual having substantial reasons to believe the offence is being committed or likely to be committed and any authority referring the complaint for investigation;";

(iii) after clause (xxvii), the following new clause shall be inserted, namely:-

"(xxviia) "sexually explicit conduct" means actual or simulated-sexual intercourse, including genital-genital, oral-genital, anal-genital, or oral-anal, whether between persons of the same or opposite sex; or

(a) bestiality; or

(b) masturbation; or

(c) sadistic or masochistic abuse; or

(d) lascivious exhibition of the anus, genitals, or pubic area of any person;"; and

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(iv) after clause (xxviii), the following new clause shall be inserted, namely:-

"(xxviiia) "sexual abuse of a minor" shall have the same meaning given to "sexual abuse" in section 377A of the Pakistan Penal Code (Act XLV of 1860);".

3. **Amendment of section 22, Act XL of 2016.**—In the Act XL of 2016, in section 22, in sub-section (1), for the expression "seven years, or with fine which may extend to five million rupees or with both", the expression "fourteen years and may extend up to twenty years and with fine which shall not be less than one million rupees" shall be substituted.

4. **Insertion of new sections 22A, 22B and 22C, Act XL of 2016.**—In Act XL of 2016, after section 22, amended as aforesaid the following new sections shall be inserted, namely:-

"22A. **Online grooming, solicitation and cyber enticement.**—Whoever intentionally creates or takes steps towards creating a relationship of trust with a minor through the use of an information system or device or any other similar means of communication with the intent to facilitate, solicit or commit sexual abuse of a minor or to share, facilitate or solicit sexual content or produce sexual abuse material with a minor, shall be punished with imprisonment of either description for a term which may extend to ten years and not less than five years with fine which may extend to ten million rupees but not less than five hundred thousand rupees.

22B. **Commercial sexual exploitation of children.**—Subject to section 8, whoever is directly or indirectly involved in the use of an information system or other similar means for the purposes of the sexual exploitation of minors including child prostitution and child sex tourism by payment in money or in kind to the minor or any other person shall be punished with imprisonment of either description for a term which shall not be less than fourteen years and may extend up to twenty years and with fine which shall not be less than one million rupees.

22C. **Use of information system for kidnapping, abduction or trafficking of minor.**—Whoever contacts a minor through the use of an information system or any other similar means directly or indirectly of communication with intent to kidnap, abduct or traffic a minor to commit sexual abuse of a minor or exploitation shall be punished with imprisonment of either description for a term which shall not be less than fourteen years and may extend up to twenty years and with fine which shall not be less than one million rupees.".

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5. **Insertion of new section 24A, Act XL of 2016.**—In Act XL of 2016, after section 24, the following new section 24A, shall be inserted, namely:-

"24A. **Cyberbullying.**—(1) A person commits the offence of cyberbullying who, with intent to harass, threaten or target another person posts or sends electronic messages, including pictures or videos by using any social media platform, including chat rooms, blogs or instant messaging.

(2) A minor through his guardian may apply to the Authority for removal, destruction of, or blocking access to such content or communication referred to in sub-section (1).

(3) The Authority, on receipt of application under sub-section (2), shall forthwith pass such orders as deemed appropriate in the circumstances including an order for removal, destruction, preventing transmission of or blocking access to such content and communication.

(4) The Authority shall, before passing an order under sub-section (3), seek report from investigation agency whether or not such content is required for investigation or prosecution purposes.

(5) Whoever commits the offence of child cyberbullying as described in sub-section (1), shall be punished with imprisonment of either description for a term which may extend to five years but shall not be less than one year with a fine of up to five hundred thousand rupees and shall not less than one hundred thousand rupees.".

6. **Amendment of section 30, Act XL of 2016.**—In Act XL of 2016, for section 30, the following shall be substituted, namely:-

"30. **Power and procedure to investigate.**—(1) In addition to the Federal Investigation Agency, the Police shall be authorized to take cognizance of the offences under this Act. In that case the Police shall be bound to refer the matter relating offence under this Act immediately to the Federal Investigation Agency, for technical opinion and investigation as per its mandate and rules:

Provided that the Federal or Provincial Government, as the case may be, may constitute one or more joint investigation teams comprising of an authorized officer of the investigation agency and any other law enforcement agency for investigation of an offence under this Act and any other law for the time being in force.

(2) An investigating officer under this Act shall be an officer or Police not below the rank of Inspector of Police or equivalent or, if the Federal Government or the Provincial Government, as the case may, deems necessary to

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constitute a Joint Investigation Team it shall be headed by an Investigating Officer not below the rank of BS-18 and other officers of Joint Investigation Team may include equivalent rank from other agencies, as the case may be. The Joint Investigation Team shall comprise five members and for the meeting purposes the quorum shall consists of three members.

(3) The investigating officer or the Joint Investigation Team, as case may be, shall complete the investigation in respect of cases triable by the court within forty-five working days.

(4) The Court shall, on taking cognizance of a case under this Act, proceed with the trial on weekly basis and shall decide the case within three months, failing which the matter shall be brought, to the notice of the Chief Justice of the High Court concerned for appropriate directions, keeping in view the facts and circumstances of the case.".

7. **Insertion of new section 30A, Act XL of 2016.**—In Act XL of 2016, after section 30, the following new sections shall be inserted, namely:-

"30A. **Remand.**—(1) Where a person is detained for investigation, the investigating officer, within twenty-four hours of the arrest, excluding the time necessary for the journey from the place of arrest to the Court, shall produce the accused before the Court, and may apply for remand of the accused to police custody, or custody of any other investigating agency joined in the investigation for which the maximum period allowed must not be more than fourteen days at one time:

Provided that, where an accused cannot within twentyfour hours be produced before the Court, a temporary order for police custody or custody of any other investigating agency joined in the investigation not exceeding twenty-four hours may be obtained from the nearest Magistrate for the purpose of producing the accused before the Court within that period.

(2) No extension in time of the remand of the accused in police custody or custody of any other investigating agency joined in the investigation shall be allowed, unless it can be shown by the investigating officer, to the satisfaction of the Court that further evidence may be available and the Court is satisfied that no bodily harm has been or will be caused to the accused:

Provided that the total period of such remand shall not in any case exceed thirty days.

(3) The Court shall be deemed to be a Magistrate for purposes of sub-section (2).".

30B. **Victim and witness protection.**—(1) A victim and witness protection system shall be established by the Federal and Provincial

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Governments of Pakistan through rules with features including the following, namely:-

(i) special security arrangements for witnesses and victims;

(ii) concealment of identity;

(iii) distance recording of testimonies through video-conferencing, audio-video links and by the use of modern devices;

(iv) re-location of victims and witnesses;

(v) provision of reasonable financial assistance;

(vi) compensation to legal heirs of protected victims and witnesses;

(vii) safe-houses, dar-ul-amans etc.; and

(viii) such other measures as may be necessary and ancillary.

(2) Till such time the rules envisaged in sub-section (1) are prescribed, the witness protection system and benefits prescribed under the Witness Protection, Security and Benefit Act, 201 7 (XXI of 2017) shall be applicable to both victims and witnesses under this Act, *mutatis mutandis*.

30C. **In-camera trial.**—(1) The trial of offences against minors shall be conducted in-camera:

Provided that the Court, if it thinks fit, on its own or on an application made by either of parties, allow any particular person to have access to Court proceedings, or be or remain in the Court.

(2) Notwithstanding anything contained in any other law for the time being in force, where any proceedings are held under sub-section (1), the Court may adopt appropriate measures, including holding of the trial through video-link or usage of screens, for the protection of the victims and the witnesses.

(3) Where any proceedings are held under sub-section (1), it shall not be lawful for any person to publish or broadcast any matter or information in relation to any such proceedings, except with the permission of the Court.

30D. **Investigation into the child sexual content referred to Pakistan Telecommunication Authority.**—The Federal Investigation Agency shall acquire the information of the child sexual abuse content referred for blocking and removal to Pakistan Telecommunication Authority and the organizations having data in this regard, for investigation pri[illegible] to their removal and blocking by said Authority, whether the direct complaint [illegible]nst the said material has been made or not.".

8. **Amendment of section 42, Act XL of 2016.**—In Act XL of 2016, in section 42, after the words, "to any foreign government", the words "including the government of Azad Jammu and Kashmir" shall be inserted.

9. **Amendment of section 43, Act XL of 2016.**—In Act XL of 2016, in section 43, in sub-section (2), for the expression "and 22" the expression "22, 22A, 22B and 22C" shall be substituted.

10. **Insertion of new sections 43A, Act XL of 2016.**—In Act XL of 2016, after section 43, the following new section shall be inserted, namely:-

"43A. **Complaint against cybercrimes against children.**—Complaint against the offences under sections 10, 21, 21A, 21B, 21C, 21D, 21E, 21F and abatement thereof may be lodged with concerned authorities by the complainant as defined under clause (viia) of section 2.".

11. **Insertion of new section 45A, Act XL of 2016.**—In Act XL of 2016, after section 45, the following new section shall be inserted, namely:-

"45A. **Support mechanism for the victims.**—The Government shall develop mechanism for the support of victims in collaboration with other agencies and civil society organizations.".

12. **Amendment of Article 164, Qanun-e-Shahadat, 1984.**—In the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984), for Article 164, the following shall be substituted, namely:-

" 164. **Production of evidence that has become available because of modern devices or information system, etc.**—Depending on the nature of case and circumstances, the Court may, if deem appropriate, allow to be produced any evidence or witnesses recorded by the Court through the modern devices or techniques including video call, viber, skype, imo, whatsapp, facebook messenger, line caller and video· conference, etc.".

13. **Omission of sections 292B and 292C, Act XLV of 1860.**—In the Pakistan Penal Code (Act XLV of 1860), sections 292B and 292C shall be omitted.

TAHIR HUSSAIN
Secretary.

PRINTED BY THE MANAGER, PRINTING CORPORATION OF PAKISTAN PRESS, ISLAMABAD.
PUBLISHED BY THE DEPUTY CONTROLLER, STATIONERY AND FORMS, UNIVERSITY ROAD, KARACHI.

REGISTERED No. M - 302 / L.-7646

The Gazette of Pakistan

EXTRAORDINARY
PUBLISHED BY AUTHORITY

ISLAMABAD, MONDAY, AUGUST 22, 2016

PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 19th August, 2016

No. F. 22(3)/2015-Legis.—The following Acts of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 18th August, 2016 are hereby published for general information:—

ACT NO. XL OF 2016

An Act to make provisions for prevention of electronic crimes

WHEREAS it is expedient to prevent unauthorized acts with respect to information systems and provide for related offences as well as mechanisms for their investigation, prosecution, trial and international cooperation with respect thereof and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

Price: Rs. 20.50

[3545(2016)/Ex. Gaz.]

CHAPTER I

PRELIMINARY

1. Short title, extent, application and commencement.—(1) This Act may be called the Prevention of Electronic Crimes Act, 2016.

(2) It extends to the whole of Pakistan.

(3) It shall apply to every citizen of Pakistan wherever he may be and also to every other person for the time being in Pakistan.

(4) It shall also apply to any act committed outside Pakistan by any person if the act constitutes an offence under this Act and affects a person, property, information system or data located in Pakistan.

(5) It shall come into force at once.

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context,—

(i) "act" includes—

(a) a series of acts or omissions contrary to the provisions of this Act; or

(b) causing an act to be done by a person either directly or through an automated information system or automated mechanism or self-executing, adaptive or autonomous device and whether having temporary or permanent impact;

(ii) "access to data" means gaining control or ability to use, copy, modify or delete any data held in or generated by any device or information system;

(iii) "access to information system" means gaining control or ability to use any part or whole of an information system whether or not through infringing any security measure;

(iv) "Authority" means the Pakistan Telecommunication Authority established under the Pakistan Telecommunication (Re-organization) Act, 1996 (XVII of 1996);

(v) "authorization" means authorization by law or by the person empowered to make such authorization under the law:

Provided that where an information system or data is available for open access by the general public, access to or transmission of such information system or data shall be deemed to be authorized for the purposes of this Act;

(vi) "authorized officer" means an officer of the investigation agency authorized to perform any function on behalf of the investigation agency by or under this Act;

(vii) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898);

(viii) "content data" means any representation of fact, information or concept for processing in an information system including source code or a program suitable to cause an information system to perform a function;

(ix) "Court" means the Court of competent jurisdiction designated under this Act;

(x) "critical infrastructure" means critical elements of infrastructure namely assets, facilities, systems, networks or processes the loss or compromise of which could result in,—

(a) major detrimental impact on the availability, integrity or delivery of essential services including those services, whose integrity, if compromised, could result in significant loss of life or casualties, taking into account significant economic or social impacts; or

(b) significant impact on national security, national defense, or the functioning of the state:

Provided that the Government may designate any private or Government infrastructure in accordance with the objectives of sub-paragraphs (i) and (ii) above, as critical infrastructure as may be prescribed under this Act;

(xi) "critical infrastructure information system or data" means an information system, program or data that supports or performs a function with respect to a critical infrastructure;

(xii) "damage to an information system" means any unauthorized change in the ordinary working of an information system that impairs its performance, access, output or change in location whether temporary or permanent and with or without causing any change in the system;

(xiii) "data" includes content data and traffic data;

(xiv) "data damage" means alteration, deletion, deterioration, erasure, relocation, suppression of data or making data temporarily or permanently unavailable;

(xv) "device" includes,—

(a) physical device or article;

(b) any electronic or virtual tool that is not in physical form;

(c) a password, access code or similar data, in electronic or other form, by which the whole or any part of an information system is capable of being accessed; or

(d) automated, self-executing, adaptive or autonomous devices, programs or information systems;

(xvi) "dishonest intention" means intention to cause injury, wrongful gain or wrongful loss or harm to any person or to create hatred or incitement to violence;

(xvii) "electronic" includes electrical, digital, magnetic, optical, biometric, electrochemical, electromechanical, wireless or electromagnetic technology;

(xviii) "identity information" means an information which may authenticate or identify an individual or an information system and enable access to any data or information system;

(xix) "information" includes text, message, data, voice, sound, database, video, signals, software, computer programmes, any forms of intelligence as defined under the Pakistan Telecommunication (Reorganization) Act, 1996 (XVII of 1996) and codes including object code and source code;

(xx) "information system" means an electronic system for creating, generating, sending, receiving, storing, reproducing, displaying, recording or processing any information;

(xxi) "integrity" means, in relation to an electronic document, electronic signature or advanced electronic signature, the electronic document, electronic signature or advanced electronic signature that has not been tampered with, altered or modified since a particular point in time;

(xxii) "interference with information system or data" means and includes an unauthorized act in relation to an information system or data that may disturb its normal working or form with or without causing any actual damage to such system or data;

(xxiii) "investigation agency" means the law enforcement agency established by or designated under this Act;

(xxiv) "minor" means, notwithstanding anything contained in any other law, any person who has not completed the age of eighteen years;

(xxv) "offence" means an offence punishable under this Act except when committed by a person under ten years of age or by a person above ten years of age and under fourteen years of age, who has not attained sufficient maturity of understanding to judge the nature and consequences of his conduct on that occasion;

(xxvi) "rules" means rules made under this Act;

(xxvii) "seize" with respect to an information system or data includes taking possession of such system or data or making and retaining a copy of the data;

(xxviii) "service provider" includes a person who,—

(a) acts as a service provider in relation to sending, receiving, storing, processing or distribution of any electronic communication or the provision of other services in relation to electronic communication through an information system;

(b) owns, possesses, operates, manages or controls a public switched network or provides telecommunication services; or

(c) processes or stores data on behalf of such electronic communication service or users of such service;

(xxix) "subscriber information" means any information held in any form by a service provider relating to a subscriber other than traffic data;

(xxx) "traffic data" includes data relating to a communication indicating its origin, destination, route, time, size, duration or type of service;

(xxxi) "unauthorized access" means access to an information system or data which is not available for access by general public, without authorization or in violation of the terms and conditions of the authorization;

(xxxii) "unauthorized interception" shall mean in relation to an information system or data, any interception without authorization; and

(xxxiii) "unsolicited information" means the information which is sent for commercial and marketing purposes against explicit rejection of the recipient and does not include marketing authorized under the law.

(2) Unless the context provides otherwise, any other expression used in this Act or rules made thereunder but not defined in this Act, shall have the same meanings assigned to the expressions in the Pakistan Penal Code, 1860 (Act XLV of 1860), the Code of Criminal Procedure, 1898 (Act V of 1898) and the Qanoon-e-Shahadat, 1984 (P.O.No.X of 1984), as the case may be.

CHAPTER II

OFFENCES AND PUNISHMENTS

3. Unauthorized access to information system or data.—Whoever with dishonest intention gains unauthorized access to any information system or data shall be punished with imprisonment for a term which may extend to three months or with fine which may extend to fifty thousand rupees or with both.

4. Unauthorized copying or transmission of data.—Whoever with dishonest intention and without authorization copies or otherwise transmits or causes to be transmitted any data shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to one hundred thousand rupees or with both.

5. Interference with information system or data.—Whoever with dishonest intention interferes with or damages or causes to be interfered with or damages any part or whole of an information system or data shall be punished with imprisonment which may extend to two years or with fine which may extend to five hundred thousand rupees or with both.

6. Unauthorized access to critical infrastructure information system or data.—Whoever with dishonest intention gains unauthorized access to any critical infrastructure information system or data shall be punished with imprisonment which may extend to three years or with fine which may extend to one million rupees or with both.

7. Unauthorized copying or transmission of critical infrastructure data.—Whoever with dishonest intention and without authorization copies or otherwise transmits or causes to be transmitted any critical infrastructure data shall be punished with imprisonment for a term which may extend to five years, or with fine which may extend to five million rupees or with both.

8. Interference with critical infrastructure information system or data.—Whoever with dishonest intention interferes with or damages, or causes to be interfered with or damaged, any part or whole of a critical information system, or data , shall be punished with imprisonment which may extend to seven years or with fine which may extend to ten million rupees or with both.

9. Glorification of an offence.—(1) Whoever prepares or disseminates information, through any information system or device, with the intent to glorify an offence relating to terrorism, or any person convicted of a crime relating to terrorism, or activities of proscribed organizations or individuals or groups shall be punished with imprisonment for a term which may extend to seven years or with fine which may extend to ten million rupees or with both.

Explanation.—For the purposes of this section "glorification" includes depiction of any form of praise or celebration in a desirable manner.

10. Cyber terrorism.—Whoever commits or threatens to commit any of the offences under sections 6, 7, 8 or 9, where the commission or threat is with the intent to,—

(a) coerce, intimidate, create a sense of fear, panic or insecurity in the Government or the public or a section of the public or community or sect or create a sense of fear or insecurity in society; or

(b) advance inter-faith, sectarian or ethnic hatred; or

(c) advance the objectives of organizations or individuals or groups proscribed under the law, shall be punished with imprisonment of either description for a term which may extend to fourteen years or with fine which may extend to fifty million rupees or with both.

11. Hate speech.—Whoever prepares or disseminates information, through any information system or device, that advances or is likely to advance interfaith, sectarian or racial hatred, shall be punished with imprisonment for a term which may extend to seven years or with fine or with both.

12. Recruitment, funding and planning of terrorism.—Whoever prepares or disseminates information, through any information system or device, that invites or motivates to fund, or recruits people for terrorism or plans for terrorism shall be punished with imprisonment for a term which may extend to seven years or with fine or with both.

13. Electronic forgery.—(1) Whoever interferes with or uses any information system, device or data, with the intent to cause damage or injury to the public or to any person, or to make any illegal claim or title or to cause any person to part with property or to enter into any express or implied contract, or

with intent to commit fraud by any input, alteration, deletion, or suppression of data, resulting in unauthentic data with the intent that it be considered or acted upon for legal purposes as if it were authentic, regardless of the fact that the data is directly readable and intelligible or not, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to two hundred and fifty thousand rupees or with both.

(2) Whoever commits offence under sub-section (1) in relation to a critical infrastructure information system or data shall be punished with imprisonment for a term which may extend to seven years or with fine which may extend to five million rupees or with both.

14. Electronic fraud.—Whoever with the intent for wrongful gain interferes with or uses any information system, device or data or induces any person to enter into a relationship or deceives any person, which act or omission is likely to cause damage or harm to that person or any other person shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to ten million rupees or with both.

15. Making, obtaining, or supplying device for use in offence. — Whoever produces, makes, generates, adapts, exports, supplies, offers to supply or imports for use any information system, data or device, with the intent to be used or believing that it is primarily to be used to commit or to assist in the commission of an offence under this Act shall, without prejudice to any other liability that he may incur in this behalf, be punished with imprisonment for a term which may extend to six months or with fine which may extend to fifty thousand rupees or with both.

16. Unauthorized use of identity information.—(1) Whoever obtains, sells, possesses, transmits or uses another person's identity information without authorization shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to five million rupees, or with both.

(2) Any person whose identity information is obtained, sold, possessed, used or transmitted may apply to the Authority for securing, destroying, blocking access or preventing transmission of identity information referred to in sub-section (1) and the Authority on receipt of such application may take such measures as deemed appropriate for securing, destroying or preventing transmission of such identity information.

17. Unauthorized issuance of SIM cards etc.—Whoever sells or otherwise provides subscriber identity module (SIM) card, re-usable identification module (R-IUM) or universal integrated circuit card (UICC) or other module designed for authenticating users to establish connection with the network and to be used in cellular mobile, wireless phone or other digital devices

such as tablets, without obtaining and verification of the subscriber's antecedents in the mode and manner for the time being approved by the Authority shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to five hundred thousand rupees or with both.

18. Tampering, etc. of communication equipment.—Whoever unlawfully or without authorization changes, alters, tampers with or re-programs unique device identifier of any communication equipment including a cellular or wireless handset and starts using or marketing such device for transmitting and receiving information shall be punished with imprisonment which may extend to three years or with fine which may extend to one million rupees or with both.

Explanation.—A "unique device identifier" is an electronic equipment identifier which is unique to a communication device.

19. Unauthorized interception.—Whoever with dishonest intention commits unauthorized interception by technical means of—

(a) any transmission that is not intended to be and is not open to the public, from or within an information system; or

(b) electromagnetic emissions from an information system that are carrying data, shall be punished with imprisonment of either description for a term which may extend to two years or with fine which may extend to five hundred thousand rupees or with both.

20. Offences against dignity of a natural person.—(1) Whoever intentionally and publicly exhibits or displays or transmits any information through any information system, which he knows to be false, and intimidates or harms the reputation or privacy of a natural person, shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to one million rupees or with both:

Provided that nothing under this sub-section shall apply to anything aired by a broadcast media or distribution service licensed under the Pakistan Electronic Media Regulatory Authority Ordinance, 2002 (XIII of 2002).

(2) Any aggrieved person or his guardian, where such person is a minor, may apply to the Authority for removal, destruction of or blocking access to such information referred to in sub-section (1) and the Authority on receipt of such application, shall forthwith pass such orders as deemed reasonable in the circumstances including an order for removal, destruction, preventing transmission of or blocking access to such information and the Authority may also direct any of its licensees to secure such information including traffic data.

21. Offences against modesty of a natural person and minor.—(1) Whoever intentionally and publicly exhibits or displays or transmits any information which,—

(a) superimposes a photograph of the face of a natural person over any sexually explicit image or video; or

(b) includes a photograph or a video of a natural person in sexually explicit conduct; or

(c) intimidates a natural person with any sexual act, or any sexually explicit image or video of a natural person; or

(d) cultivates, entices or induces a natural person to engage in a sexually explicit act,

through an information system to harm a natural person or his reputation, or to take revenge, or to create hatred or to blackmail, shall be punished with imprisonment for a term which may extend to five years or with fine which may extend to five million rupees or with both.

(2) Whoever commits an offence under sub-section (1) with respect to a minor shall be punished with imprisonment for a term which may extend to seven years and with fine which may extend to five million rupees:

Provided that in case of a person who has been previously convicted of an offence under sub-section (1) with respect to a minor shall be punished with imprisonment for a term of ten years and with fine.

(3) Any aggrieved person or his guardian, where such person is a minor, may apply to the Authority for removal, destruction of or blocking access to such information referred to in sub-section (1) and the Authority, on receipt of such application, shall forthwith pass such orders as deemed reasonable in the circumstances including an order for removal, destruction, preventing transmission of or blocking access to such information and the Authority may also direct any of its licensees to secure such information including traffic data.

22. Child pornography.—(1) Whoever intentionally produces, offers or makes available, distributes or transmits through an information system or procures for himself or for another person or without lawful justification possesses material in an information system, that visually depicts—

(a) a minor engaged in sexually explicit conduct;

(b) a person appearing to be a minor engaged in sexually explicit conduct; or

(c) realistic images representing a minor engaged in sexually explicit conduct; or

(d) discloses the identity of the minor,

shall be punished with imprisonment for a term which may extend to seven years, or with fine which may extend to five million rupees or with both.

(2) Any aggrieved person or his guardian, where such person is a minor, may apply to the Authority for removal, destruction of or blocking access to such information referred to in sub-section (1) and the Authority, on receipt of such application, shall forthwith pass such orders as deemed reasonable in the circumstances, including an order for removal, destruction, preventing transmission of or blocking access to such information and the Authority may also direct any of its licensees to secure such information including traffic data.

23. Malicious code.—Whoever willfully and without authorization writes, offers, makes available, distributes or transmits malicious code through an information system or device, with intent to cause harm to any information system or data resulting in the corruption, destruction, alteration, suppression, theft or loss of the information system or data shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to one million rupees or with both.

Explanation.—For the purpose of this section, the expression "malicious code" includes, a computer program or a hidden function in a program that damages an information system or data or compromises the performance of such system or availability of data or uses it without proper authorization.

24. Cyber stalking.—(1) A person commits the offence of cyber stalking who, with the intent to coerce or intimidate or harass any person, uses information system, information system network, the Internet, website, electronic mail or any other similar means of communication to—

(a) follow a person or contacts or attempts to contact such person to foster personal interaction repeatedly despite a clear indication of disinterest by such person;

(b) monitor the use by a person of the internet, electronic mail, text message or any other form of electronic communication;

(c) watch or spy upon a person in a manner that results in fear of violence or serious alarm or distress, in the mind of such person; or

(d) take a photograph or make a video of any person and displays or distributes it without his consent in a manner that harms a person.

(2) Whoever commits the offence specified in sub-section (1) shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to one million rupees or with both:

Provided that if victim of the cyber stalking under sub-section (1) is a minor the punishment may extend to five years or with fine which may extend to ten million rupees or with both.

(3) Any aggrieved person or his guardian, where such person is a minor, may apply to the Authority for removal, destruction of or blocking access to such information referred to in sub-section (1) and the Authority, on receipt of such application, shall forthwith pass such orders as deemed reasonable in the circumstances including an order for removal, destruction, preventing transmission of or blocking access to such information and the Authority may also direct any of its licensees to secure such information including traffic data.

25. Spamming.—(1) A person commits the offence of spamming, who with intent transmits harmful, fraudulent, misleading, illegal or unsolicited information to any person without permission of the recipient or who causes any information system to show any such information for wrongful gain.

(2) A person including an institution or an organization engaged in direct marketing shall provide the option to the recipient of direct marketing to unsubscribe from such marketing.

(3) Whoever commits the offence of spamming as described in sub-section (1) by transmitting harmful, fraudulent, misleading or illegal information, shall be punished with imprisonment for a term which may extend to three months or with fine of rupees fifty thousand which may extend upto rupees five million or with both.

(4) Whoever commits the offence of spamming as described in sub-section (1) by transmitting unsolicited information, or engages in direct marketing in violation of sub-section (2), for the first time, shall be punished with fine not exceeding fifty thousand rupees, and for every subsequent violation shall be punished with fine not less than fifty thousand rupees that may extend up to one million rupees.

26. Spoofing.—(1) Whoever with dishonest intention establishes a website or sends any information with a counterfeit source intended to be believed by the recipient or visitor of the website, to be an authentic source commits spoofing.

(2) Whoever commits spoofing shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to five hundred thousand rupees or with both.

27. Legal recognition of offences committed in relation to information system.—(1) Notwithstanding anything contained in any other law for the time being in force, an offence under this Act or any other law shall not be

denied legal recognition and enforcement for the sole reason of such offence being committed in relation to or through the use of an information system.

(2) References to "property" in any law creating an offence in relation to or concerning property, shall include information system and data.

28. Pakistan Penal Code, 1860 (Act XLV of 1860) to apply.—The provisions of the Pakistan Penal Code, 1860 (Act XLV of 1860), to the extent not inconsistent with anything provided in this Act, shall apply to the offences provided in this Act.

CHAPTER III

ESTABLISHMENT OF INVESTIGATION AGENCY AND PROCEDURAL POWERS FOR INVESTIGATION

29. Establishment of investigation agency.—(1) The Federal Government may establish or designate a law enforcement agency as the investigation agency for the purposes of investigation of offences under this Act.

(2) Unless otherwise provided for under this Act, the investigation agency and the authorized officer shall in all matters follow the procedure laid down in the Code to the extent that it is not inconsistent with any provision of this Act.

(3) The investigation agency shall establish its own capacity for forensic analysis of the data or in information systems and the forensic analysis reports generated by the investigation agency shall not be inadmissible in evidence before any court for the sole reason that such reports were generated by the investigation agency.

(4) Notwithstanding provisions of any other law, the Federal Government shall make rules for appointment and promotion in the investigation agency including undertaking of specialized courses in digital forensics, information technology, computer science and other related matters for training of the officers and staff of the investigation agency.

30. Power to investigate.—Only an authorized officer of the investigation agency shall have the powers to investigate an offence under this Act:

Provided that the Federal Government or the Provincial Government may, as the case may be, constitute one or more joint investigation teams comprising of an authorized officer of the investigation agency and any other law enforcement agency for investigation of an offence under this Act and any other law for the time being in force.

31. Expedited preservation and acquisition of data.—(1) If an authorised officer is satisfied that—

(a) specific data stored in any information system or by means of an information system is reasonably required for the purposes of a criminal investigation; and

(b) there is a risk or vulnerability that the data may be modified, lost, destroyed or rendered inaccessible,

the authorized officer may, by written notice given to the person in control of the information system, require that person to provide that data or to ensure that the data specified in the notice be preserved and the integrity thereof is maintained for a period not exceeding ninety days as specified in the notice:

Provided that the authorized officer shall immediately but not later than twenty-four hours bring to the notice of the Court, the fact of acquisition of such data and the Court on receipt of such information may pass such orders as deemed appropriate in the circumstances of the case including issuance of warrants for retention of such data or otherwise.

(2) The period provided in sub-section (1) for preservation of data may be extended by the Court if so deemed necessary upon receipt of an application from the authorized officer in this behalf.

32. Retention of traffic data.—(1) A service provider shall, within its existing or required technical capability, retain its specified traffic data for a minimum period of one year or such period as the Authority may notify from time to time and, subject to production of a warrant issued by the Court, provide that data to the investigation agency or the authorized officer whenever so required.

(2) The service providers shall retain the traffic data under sub-section (1) by fulfilling all the requirements of data retention and its originality as provided under sections 5 and 6 of the Electronic Transactions Ordinance, 2002 (LI of 2002).

(3) Any owner of the information system who is not a licensee of the Authority and violates sub-section (1) shall be guilty of an offence punishable, if committed for the first time, with fine which may extend to ten million rupees and upon any subsequent conviction shall be punishable with imprisonment which may extend to six months or with fine or with both:

Provided that where the violation is committed by a licensee of the Authority, the same shall be deemed to be a violation of the terms and conditions of the licensee and shall be treated as such under the Pakistan Telecommunication (Re-organization) Act, 1996 (XVII of 1996).

33. Warrant for search or seizure.—(1) Upon an application by an authorized officer that demonstrates to the satisfaction of the Court that there exist reasonable grounds to believe that there may be in a specified place an information system, data, device or other articles that—

(a) may reasonably be required for the purpose of a criminal investigation or criminal proceedings which may be material as evidence in proving a specifically identified offence made out under this Act; or

(b) has been acquired by a person as a result of the commission of an offence, the Court may issue a warrant which shall authorize an officer of the investigation agency, with such assistance as may be necessary, to enter the specified place and to search the premises and any information system, data, device or storage medium relevant to the offence identified in the application and access, seize or similarly secure any information system, data, device or other articles relevant to the offence identified in the application.

(2) In circumstances involving an offence under section 10, under which a warrant may be issued but cannot be obtained without the apprehension of destruction, alteration or loss of data, information system, data, device or other articles required for investigation, the authorized officer, who shall be a Gazetted officer of the investigation agency, may enter the specified place and search the premises and any information system, data, device or other articles relevant to the offence and access, seize or similarly secure any information system, data, device or other articles relevant to the offence:

Provided that the authorized officer shall immediately but not later than twenty-four hours bring to the notice of the Court, the fact of such search or seizure and the Court on receipt of such information may pass such orders as deemed appropriate in the circumstances of the case.

34. Warrant for disclosure of content data.—(1) Upon an application by an authorised officer that demonstrates to the satisfaction of the Court that there exist reasonable grounds to believe that the content data stored in an information system is reasonably required for the purpose of a criminal investigation or criminal proceedings with respect to an offence made out under this Act, the Court may, after recording reasons, order that the person in control of the data or information system, to provide such data or access to such data to the authorized officer.

(2) The period of a warrant issued under sub-section (1) may be extended beyond seven days if, on an application, a Court authorizes an extension for a further period of time as may be specified by the Court.

35. Powers of an authorized officer.—(1) Subject to provisions of this Act, an authorized officer shall have the powers to—

(a) have access to and inspect the operation of any specified information system;

(b) use or cause to be used any specified information system to search any specified data contained in or available to such system;

(c) obtain and copy only relevant data, use equipment to make copies and obtain an intelligible output from an information system;

(d) have access to or demand any information in readable and comprehensible format or plain version;

(e) require any person by whom or on whose behalf, the authorized officer has reasonable cause to believe, any information system has been used to grant access to any data within an information system within the control of such person;

(f) require any person having charge of or otherwise concerned with the operation of any information system to provide him reasonable technical and other assistance as the authorized officer may require for investigation of an offence under this Act; and

(g) require any person who is in possession of decryption information of an information system, device or data under investigation to grant him access to such data, device or information system in unencrypted or decrypted intelligible format for the purpose of investigating any such offence:

Explanation.—Decryption information means information or technology that enables a person to readily retransform or unscramble encrypted data from its unreadable form and from ciphered data to intelligible data.

(2) In exercise of the power of search and seizure of any information system, program or data the authorized officer at all times shall,—

(a) act with proportionality;

(b) take all precautions to maintain integrity and secrecy of the information system and data in respect of which a warrant for search or seizure has been issued;

(c) not disrupt or interfere with the integrity or running and operation of any information system or data that is not the subject of the offences identified in the application for which a warrant for search or seizure has been issued;

(d) avoid disruption to the continued legitimate business operations and the premises subjected to search or seizure under this Act; and

(e) avoid disruption to any information system, program or data not connected with the information system that is not the subject of the offences identified in the application for which a warrant has been issued or is not necessary for the investigation of the specified offence in respect of which a warrant has been issued.

(3) When seizing or securing any data or information system, the authorized officer shall make all efforts to use technical measures to maintain its integrity and chain of custody. The authorized officer shall seize an information system, data, device or articles, in part or in whole, as a last resort only in the event where it is not possible under the circumstances to use such technical measures or where use of such technical measures by themselves shall not be sufficient to maintain the integrity and chain of custody of the data or information system being seized.

(4) Where an authorized officer seizes or secures any data or information system, the authorized officer shall ensure that data or information system while in the possession or in the access of the authorized officer is not released to any other person including competitors or public at large and details including log of any action performed on the information system or data is maintained in a manner prescribed under this Act.

36. Dealing with seized data or information system.—(1) If any data or information system has been seized or secured following a search or seizure under this Act, the authorized officer who undertook the search or seizure shall, at the time of the seizure,—

(a) make a list of what has been seized or rendered inaccessible, with the date and time of seizure; and

(b) give a copy of that list to,—

(i) the occupier of the premises; or

(ii) the owner of the data or information system; or

(iii) the person from whose possession the data or information system has been seized, in a prescribed manner in the presence of two witnesses.

(2) The authorized officer, upon an application of the owner of the data or information system or an authorized agent of the owner and on payment of prescribed costs, shall provide forensic image of the data or information system to the owner or his authorized agent within a time prescribed under this Act.

(3) If the authorized officer has reasons to believe that providing forensic image of the data or information system to the owner under sub-section (2) may prejudice,—

(a) the investigation in connection with which the search was carried out; or

(b) another ongoing investigation; or

(c) any criminal proceedings that are pending or that may be brought in relation to any of those investigations, the authorized officer shall, within seven days of receipt of the application under sub-section (2), approach the Court for seeking an order not to provide copy of the seized data or information system.

(4) The Court, upon receipt of an application from an authorized officer under sub-section (3), may after recording reasons in writing pass such order as deemed appropriate in the circumstances of the case.

(5) The costs associated with the exercise of rights under this section shall be borne by the person exercising these rights.

37. Unlawful on-line content.—(1) The Authority shall have the power to remove or block or issue directions for removal or blocking of access to an information through any information system if it considers it necessary in the interest of the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, public order, decency or morality, or in relation to contempt of court or commission of or incitement to an offence under this Act.

(2) The Authority shall, with the approval of the Federal Government, prescribe rules providing for, among other matters, safeguards, transparent process and effective oversight mechanism for exercise of powers under sub-section (1).

(3) Until such rules are prescribed under sub-section (2), the Authority shall exercise its powers under this Act or any other law for the time being in force in accordance with the directions issued by the Federal Government not inconsistent with the provisions of this Act.

(4) Any person aggrieved from any order passed by the Authority under sub-section (1), may file an application with the Authority for review of the order within thirty days from the date of passing of the order.

(5) An appeal against the decision of the Authority in review shall lie before the High Court within thirty days of the order of the Authority in review.

38. Limitation of liability of service providers.—(1) No service provider shall be subject to any civil or criminal liability, unless it is established that the service provider had specific actual knowledge and willful intent to proactively and positively participate, and not merely through omission or failure to act, and thereby facilitated, aided or abetted the use by any person of any information system, service, application, online platform or telecommunication system maintained, controlled or managed by the service provider in connection with a contravention of this Act or rules made thereunder or any other law for the time being in force:

Provided that the burden to prove that a service provider had specific actual knowledge, and willful intent to proactively and positively participate in any act that gave rise to any civil or criminal liability shall be upon the person alleging such facts and no interim or final orders, or directions shall be issued with respect to a service provider by any investigation agency or Court unless such facts have so been proved and determined:

Provided further that such allegation and its proof shall clearly identify with specificity the content, material or other aspect with respect to which civil or criminal liability is claimed including but not limited to unique identifiers such as the Account Identification (Account ID), Uniform Resource Locator (URL), Top Level Domain (TLD), Internet Protocol Addresses (IP Addresses), or other unique identifier and clearly state the statutory provision and basis of the claim.

(2) No service provider shall under any circumstance be liable under this Act, rules made thereunder or any other law for maintaining and making available the provision of their service in good faith.

(3) No service provider shall be subject to any civil or criminal liability as a result of informing a subscriber, user or end-users affected by any claim, notice or exercise of any power under this Act, rules made thereunder or any other law:

Provided that the service provider, for a period not exceeding fourteen days, shall keep confidential and not disclose the existence of any investigation or exercise of any power under this Act when a notice to this effect is served upon it by an authorized officer, which period of confidentiality may be extended beyond fourteen days if, on an application by the authorized officer, the Court authorizes an extension for a further specified period upon being satisfied that reasonable cause for such extension exists.

(4) No service provider shall be liable under this Act, rules made thereunder or any other law for the disclosure of any data or other information that the service provider discloses only to the extent of the provisions of this Act.

(5) No service provider shall be under any obligation to proactively monitor, make inquiries about material or content hosted, cached, routed, relayed, conduit, transmitted or made available by such intermediary or service provider.

39. Real-time collection and recording of information.—(1) If a Court is satisfied on the basis of information furnished by an authorized officer that there are reasonable grounds to believe that the content of any information is reasonably required for the purposes of a specific criminal investigation, the Court may order, with respect to information held by or passing through a service provider, to a designated agency as notified under the Investigation for Fair Trial Act, 2013 (I of 2013) or any other law for the time being in force having capability to collect real time information, to collect or record such information in real-time in coordination with the investigation agency for provision in the prescribed manner:

Provided that such real-time collection or recording shall not be ordered for a period beyond what is absolutely necessary and in any event for not more than seven days.

(2) Notwithstanding anything contained in any law to the contrary the information so collected under sub-section (1) shall be admissible in evidence.

(3) The period of real-time collection or recording may be extended beyond seven days if, on an application, the Court authorizes an extension for a further specified period.

(4) The Court may also require the designated agency to keep confidential the fact of the execution of any power provided for in this section and any information relating to it.

(5) The application under sub-sections (1) and (2) shall in addition to substantive grounds and reasons also,—

(a) explain why it is believed that the data sought will be available with the person in control of an information system;

(b) identify and explain with specificity the type of information likely to be found on such information system;

(c) identify and explain with specificity the identified offence made out under this Act in respect of which the warrant is sought;

(d) if authority to seek real-time collection or recording on more than one occasion is needed, explain why and how many further disclosures are needed to achieve the purpose for which the warrant is to be issued;

(e) specify what measures shall be taken to prepare and ensure that the real-time collection or recording is carried out whilst maintaining the privacy of other users, customers and third parties and without the disclosure of information of any person not part of the investigation;

(f) explain why the investigation may be frustrated or seriously prejudiced unless the real time collection or recording is permitted; and

(g) why, to achieve the purpose for which the warrant is being applied, real time collection or recording by the person in control of the information system is necessary.

40. Forensic laboratory.—The Federal Government shall establish or designate a forensic laboratory, independent of the investigation agency, to provide expert opinion before the Court or for the benefit of the investigation agency in relation to electronic evidence collected for purposes of investigation and prosecution of offences under this Act.

41. Confidentiality of information.—Notwithstanding immunity granted under any other law for the time being in force, any person including a service provider while providing services under the terms of lawful contract or otherwise in accordance with the law, or an authorized officer who has secured access to any material or data containing personal information about another person, discloses such material to any other person, except when required by law, without the consent of the person concerned or in breach of lawful contract with the intent to cause or knowing that he is likely to cause harm, wrongful loss or gain to any person or compromise confidentiality of such material or data shall be punished with imprisonment for a term which may extend to three years or with fine which may extend to one million rupees or with both:

Provided that the burden of proof of any defense taken by an accused service provider or an authorized officer that he was acting in good faith, shall be on such a service provider or the authorized officer, as the case may be.

CHAPTER IV

INTERNATIONAL COOPERATION

42. International cooperation.—(1) The Federal Government may upon receipt of a request, through the designated agency under this Act, extend such cooperation to any foreign government, 24 x 7 network, any foreign agency or any international organization or agency for the purposes of investigations or proceedings concerning offences related to information systems, electronic

communication or data or for the collection of evidence in electronic form relating to an offence or obtaining expeditious preservation and disclosure of data by means of an information system or real-time collection of data associated with specified communications or interception of data under this Act.

(2) The Federal Government may forward to a foreign government, 24x7 network, any foreign agency or any international agency or organization any information obtained from its own investigations if it considers that the disclosure of such information might assist the other government, agency or organization etc., as the case be, in initiating or carrying out investigations or proceedings concerning any offence under this Act.

(3) The Federal Government shall require the foreign government, 24 x 7 network, any foreign agency or any international organization or agency to keep the information provided confidential and use it strictly for the purposes it is provided.

(4) The Federal Government may, through the designated agency, send and answer requests for mutual assistance the execution of such requests or their transmission to the authorities competent for their execution.

(5) The Federal Government may refuse to accede to any request made by a foreign government, 24 x 7 network, any foreign agency or any international organization or agency, if,—

(a) it is of the opinion that the request, if granted, would prejudice sovereignty, security, public order or other essential public interest of Pakistan;

(b) the offence is regarded by the Federal Government as being of a political nature;

(c) there are substantial grounds for believing that the request for assistance has been made for the purpose of prosecuting a person on account of that person's race, sex, religion, nationality, ethnic origin or political opinions or that that person's position may be prejudiced for any of those reasons;

(d) the request relates to an offence the prosecution of which in the requesting State may be incompatible with the laws of Pakistan;

(e) the assistance requested requires the Federal Government to carry out compulsory measures that may be inconsistent with the laws or practices of Pakistan had the offence been the subject of investigation or prosecution under its own jurisdiction; or

(f) the request concerns an offence which may prejudice an ongoing investigation or trial or rights of its citizens guaranteed under the Constitution.

(6) Where the Federal Government decides to provide the requested cooperation, the relevant requirements and safeguards provided under this Act and rules framed thereunder shall be followed.

(7) The designated agency shall maintain a register of requests received from any foreign government, 24 x 7 network, any foreign agency or any international organization or agency under this Act and action taken thereon.

CHAPTER - V

PROSECUTION AND TRIAL OF OFFENCES

43. Offences to be compoundable and non-cognizable.—(1) All offences under this Act, except the offences under sections 10, 21 and 22 and abetment thereof, shall be non-cognizable, bailable and compoundable:

Provided that offences under section 17 shall be cognizable by the investigation agency on a written complaint by the Authority.

(2) Offences under sections 10, 21 and 22 and abetment thereof shall be non-bailable, non-compoundable and cognizable by the investigation agency.

44. Cognizance and trial of offences.—(1) The Federal Government, in consultation with the Chief Justice of respective High Court, shall designate presiding officers of the Courts to try offences under this Act at such places as deemed necessary.

(2) The Federal Government shall, in consultation with the Chief Justice of respective High Court, arrange for special training of the presiding officers of the Court to be conducted by an entity notified by the Federal Government for training on computer sciences, cyber forensics, electronic transactions and data protection.

(3) Prosecution and trial of an offence under this Act committed by a minor shall be conducted under the Juvenile Justice System Ordinance, 2000 (XXII of 2000).

(4) To the extent not inconsistent with this Act, the procedure laid down under the Code and the Qanoon-e-Shahadat, 1984 (P.O.No.X of 1984), shall be followed.

45. Order for payment of compensation.—(1) The Court may, in addition to award of any punishment including fine under this Act, make an order for payment of compensation to the victim for any damage or loss caused and the compensation so awarded shall be recoverable as arrears of land revenue:

Provided that the compensation awarded by the Court shall not prejudice any right to a civil remedy for the recovery of damages beyond the amount of compensation so awarded.

46. Appointment of amicus curiae and seeking expert opinion.—The Court may appoint *amicus curiae* or seek independent expert opinion on any matter connected with a case pending before it.

47. Appeal.—An appeal against the final judgment or order of a Court shall , within thirty days from the date of provision of its certified copy free of cost, lie—

(a) to the High Court concerned against such judgment or order if passed by a court of sessions; or

(b) to the court of sessions concerned against such judgment or order if passed by a magistrate.

CHAPTER VI

PREVENTIVE MEASURES

48. Prevention of electronic crimes.—(1) The Federal Government or the Authority, as the case may be, may issue directives to be followed by the owners of the designated information systems or service providers in the interest of preventing any offence under this Act.

(2) Any owner of the information system who is not a licensee of the Authority and violates the directives issued under sub-section (1) shall be guilty of an offence punishable, if committed for the first time, with fine which may extend to ten million rupees and upon any subsequent conviction shall be punishable with imprisonment which may extend to six months or with fine or with both:

Provided that where the violation is committed by a licensee of the Authority, the same shall be deemed to be a violation of the terms and conditions of the licensee and shall be treated as such under the Pakistan Telecommunication (Re-organization) Act, 1996.

49. Computer emergency response teams.—(1) The Federal Government may constitute one or more computer emergency response teams to respond to any threat against or attack on any critical infrastructure information systems or critical infrastructure data, or widespread attack on information systems in Pakistan.

(2) A computer emergency response team constituted under sub-section (1) may comprise of technical experts of known expertise officers of any intelligence or agency or any sub-set thereof.

(3) A computer emergency response team shall respond to a threat or attack without causing any undue hindrance or inconvenience to the use and access of the information system or data as may be prescribed.

CHAPTER VII

MISCELLANEOUS

50. Relation of the Act with other laws.—(1) The provisions of this Act shall have effect not in derogation of the Pakistan Penal Code, 1860 (Act XLV of 1860), the Code of Criminal Procedure, 1898 (Act V of 1898), the Qanoon-e-Shahadat, 1984 (P.O. No. X of 1984), the Protection of Pakistan Act, 2014 (X of 2014) and the Investigation for Fair Trial Act, 2013 (I of 2013).

(2) Subject to sub-section (1), the provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law on the subject for the time being in force.

51. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out purposes of this Act.

(2) Without prejudice to the generality of the foregoing powers, such rules may specify,—

(a) qualifications and trainings of the officers and staff of the investigation agency and prosecutors;

(b) powers, functions and responsibilities of the investigation agency, its officers and prosecutors;

(c) standard , operating procedures of the investigation agency;

(d) mode and manner in which record of investigation under this Act may be maintained;

(e) manner to deal with the seized data, information system, device or other articles;

(f) working of joint investigation teams;

(g) requirements for seeking permission of the Authority to change, alter or re-programme unique device identifier of any communication equipment by any person for research or any other legitimate purpose;

(h) procedure for seeking appropriate orders of the Authority for removal, destruction or blocking access to information under this Act;

(i) constitution of computer emergency response team and the standard operating procedure to be adopted by such team;

(j) appointment of designated agency having capability to collect real time information;

(k) manner of coordination between the investigation agency and other law enforcement and intelligence agencies including designated agency;

(l) for management and oversight of the forensic laboratory;

(m) qualifications and trainings of the officers, experts and staff of the forensic laboratory;

(n) powers, functions and responsibilities of the forensic laboratory, its officers, experts and staff;

(o) standard operating procedures of the forensic laboratory to interact with the investigation agency;

(p) manner of soliciting and extending international cooperation; and

(q) matters connected or ancillary thereto.

52. Removal of difficulties.—If any difficulty arises in giving effect to the provisions of this Act, the Federal Government may, within two years of the commencement of this Act and by order published in the official Gazette, make such provisions not inconsistent with the provisions of this Act as may appear to be necessary for removing the difficulty.

53. Report to Parliament.—The agency designated or established under section 29 of the Act shall submit a half yearly report to both houses of the Parliament for consideration by the relevant Committee in camera, in respect of its activities, without disclosing identity information, in a manner as prescribed under this Act.

54. Amendment of Electronic Transactions Ordinance, 2002 (LI of 2002) and pending proceedings.—(1) Sections 36 and 37 of the Electronic Transactions Ordinance, 2002 (LI of 2002) are omitted.

(2) Any action taken by or with the approval of the Authority or proceedings pending under the provisions of the Electronic Transactions Ordinance, 2002 (LI of 2002) repealed by sub-section (1), shall continue and be deemed to have been taken or initiated under this Act.

55. Savings of powers.—Nothing in this Act shall affect, limit or prejudice the duly authorized and lawful powers and functions of the institutions controlled by the Governments exercised and performed in good faith.

ACT NO. XLI OF 2016

An Act further to amend the Banks (Nationalization) Act, 1974

WHEREAS it is expedient further to amend the Banks (Nationalization) Act, 1974 (XIX of 1974), for the purposes hereinafter appearing;

AND WHEREAS the Supreme Court of Pakistan in a case reported as 'Muhammad Idris *vs* Federation of Pakistan, PLD 2011 SC 213' held that the amendments in question in section 11 of the Banks (Nationalization) Act, 1974, did not fall within the ambit of sub-clause (a) to (g) of clause (2) of Article 73 of the Constitution thus could not have been introduced by way of Finance Act, 2007;

It is hereby enacted as follows:—

1. Short title and commencement.—This Act may be called the Banks (Nationalization) (Amendment) Act, 2016.

(2) It shall come into force at once and shall be deemed to have taken effect on the 1st July, 2007.

2. Amendment of section 11, Act XIX of 1974.—In the Banks (Nationalization) Act, 1974 (XIX of 1974), in section 11,—

(a) in sub-section (1), for clause (b), the following shall be substituted, namely:—

"(b) not less than five and not more than seven other members including one or more directors whose election by the private shareholders, removal and other matters shall be governed by the Companies Ordinance, 1984 (XLVII of 1984)." ;and

(b) in sub-section (3),—

(i) after the word "Board", the words "representing the Federal Government's direct and indirect shareholding", shall be added; and

(ii) for clause (d), the following shall be substituted, namely:—

"(d) may be re-appointed for second and final term by the Federal Government, in consultation with the State Bank of Pakistan, for a further period of three years.".

ABDUL JABBAR ALI,
Secretary.

PRINTED BY THE MANAGER, PRINTING CORPORATION OF PAKISTAN PRESS, ISLAMABAD.
PUBLISHED BY THE DEPUTY CONTROLLER, STATIONERY AND FORMS, UNIVERSITY ROAD, KARACHI.